s. 47E(d)

Released by Department of Home Affairs
under the *Freedom of Information Act 1982*

From: vida Reid <vida_reid@yahoo.com>
Sent: Monday, 7 October 2024 8:16 PM
To: s. 22(1)(a)(ii)
Subject: Re: Harassment, unlawful detention and seizure of electronic of 4 devices by ABF at request of NDIS and NDIS minister [SEC=UNOFFICIAL]
Attachments: ABF complaint-1 of 2.jpg; ABF complaint-2of 2.jpg

Categories: s. 22(1)(a)(ii)

Good Afternoon,

I have successfully filed the complaint at your preferred method.
I have attached the 2 receipts as it would nto allow me to write my complaint in full in the 1 report.

I demand a response within 7 business day.

Kind Regards,
Vida

On Monday 7 October 2024 at 12:22:23 pm AWST s. 22(1)(a)(ii) wrote:

UNOFFICIAL

Good morning,

Please follow the prompts below and the link provided will work for you:

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Do you have an enquiry or seek a status update regarding a service or proc Department, including ABF ? *

- ◯ Yes
- ◉ No

Select the subject of your feedback *

- ◯ Visa
- ◯ Immigration Detention Centre
- ◯ Citizenship
- ◉ Travellers (arrivals/departures)
- ◯ Tourist Refund Scheme
- ◯ Cargo/Mail (import/export)
- ◯ Translating and Interpreting Service (TIS National)
- ◯ Digital services (website, VEVO or ImmiAccount)
- ◯ Travel exemption

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Does your feedback relate to fines or seizures of food items, seeds, wooden undertaken by Department of Agriculture and Water Resources? *

- ○ Yes
- ◉ No

Does your feedback relate to pre-flight security screening? *

- ○ Yes
- ◉ No

Type of feedback *

- ◉ Complaint
- ○ Suggestion
- ○ Compliment

Do you wish your feedback to be anonymous? *

- ○ Yes
- ◉ No

Please click on the blue NEXT button and this will take you to the screen to lodge your complaint.

Regards

Operational Support Group (OSG)

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Operations West | West

Regional Operations

Australian Border Force

E:s. 22(1)(a)(ii)

UNOFFICIAL

From: vida Reid <vida_reid@yahoo.com>
Sent: Friday, 4 October 2024 4:43 PM
To:s. 22(1)(a)(ii)
Subject: Re: Harassment, unlawful detention and seizure of electronic of 4 devices by ABF at request of NDIS and NDIS minister [SEC=UNOFFICIAL]

Good Afternoon,

Thank you for the reply and for the link, however the link does not work. please se ebelow screen shot.

Please provide an email for the complaint kindly as this is urgent and very serious.

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under the *Freedom of Information Act 1982*



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On Friday 4 October 2024 at 01:14:51 pm AWST s. 22(1)(a)(ii) wrote:

UNOFFICIAL

Good afternoon Mrs Reid,

Your concerns are of utmost importance to us, and we appreciate you bringing them to our attention.

To ensure that your complaint receives the attention it deserves and is handled within our compliance frameworks, we kindly request that you submit your complaint through our official channels at Compliments, complaints and suggestions (homeaffairs.gov.au)

This will allow us to process your feedback promptly and in accordance with our established procedures.

Rest assured that all complaints are taken seriously, and we are committed to addressing them effectively.

Your cooperation in this matter will enable us to better assist you and work towards resolving any issues you have encountered.

Regards

Operational Support Group (OSG)

Operations West | West

Regional Operations

Australian Border Force

E: s. 22(1)(a)(ii)

Released by Department of Home Affairs under the *Freedom of Information Act 1982*

UNOFFICIAL

From: vida Reid <vida_reid@yahoo.com>
Sent: Friday, 4 October 2024 12:49 PM
To: s. 22(1)(a)(ii) feedback@ndis.gov.au; enquiries@ndis.gov.au
Cc: Perth Magistrates Court <perthmagistratescourt@justice.wa.gov.au>; Simon Reid <reid.simon4@gmail.com>; sydney.registry@aat.gov.au
Subject: Harassment, unlawful detention and seizure of electronic of 4 devices by ABF at request of NDIS and NDIS minister

Good Afternoon,

I am writing to lodge a formal complaint regarding a serious distressing incident involving unlawful detention, harassment, and violation of Legal Professional Privilege (LPP) by Australian Border Force (ABF) officers during my travel from **Perth to Bali on 25th September 2024.** My husband and I were detained by ABF officers at **Perth Airport** prior to our departure for about 3 hours, where our electronic devices were confiscated and searched without a warrant.

I would like to emphasize the extent to which the actions of the Australian Border Force (ABF) officers during our travel on **25th September 2024** violated established laws and guidelines governing their conduct. Specifically, I refer to provisions of the **Australian Border Force Act 2015**, **Customs Act 1901**, and relevant ABF operational guidelines. These actions included unlawful detention, violation of Legal Professional Privilege, and mistreatment of our disabled child.

Incident Summary:

- **Date and Location**: 25th September 2024, at **Perth Airport**, while attempting to depart for Bali.
- **Confiscated Devices**: Our phones and laptops were confiscated, and we were advised the contents were copied without our consent or a warrant at the instructions and request of the NDIS and NDIS taskforce.
- **Violation of Legal Professional Privilege**: Despite my objections, ABF officers photocopied documents that are protected under LPP.
- **No Certification Provided**: When I requested a certificate confirming the copying of my legally privileged documents, any actions they are taking with our devices etc, ABF officers refused to provide one. Furthermore, we were refused contact with our law firm to assert this privilege.
- **Phone confiscated**: My husband's phone was taken due to him not remembering his pin code despite the phone being unlocked already and the Border Force personnel insinuated he is a liar for not remembering it. They got aggressive with my husband stating they cannot copy the content over if they don't have the pin even though the phone is unlocked. They stated they can't tell my husband if or when he will have his phone back.

    - **Search of Luggage and Disabled Child's Items**: The officers removed our luggage from the plane and went as far as searching through my disabled son's belongings and his little bag of story books he was holding.

    - My son has six disabilities, including **autism level 3**, is **non-verbal**, and was extremely distressed by the situation. During the search, he was **screaming, running around in panic**, and completely overwhelmed. Despite this, the officers continued their actions, disregarding his condition and the emotional toll on him.

- **Threats of Future Detention**: ABF officers, including s. 22(1)(a)(ii) advised us that we will be detained every time we travel in the future as per the NIDS instructions and each time all of our data will continuously be collected, without providing any justification for such a threat.

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When questioned several times, The Border Force employees stated that they were following instructions from the **National Disability Insurance Scheme (NDIS)** to bypass the legal requirement of obtaining a warrant, which is highly irregular and raises concerns of unlawful detention and surveillance targeting individuals including children with disabilities.

This conduct has caused extreme distress, as we were treated unlawfully, had our privacy breached, and were subjected to intimidation with the threat of future detentions.

Violations:

1. **Unlawful Search and Seizure of Devices Without a Warrant**:

    - The **Customs Act 1901** grants ABF officers powers to search and seize items, but only under specific conditions and with reasonable grounds for suspicion. In this instance, the **confiscation and copying of our electronic devices without a warrant or proper justification** breaches both the **Customs Act** and the **Australian Border Force Act 2015.**
    - Furthermore, according to **ABF guidelines**, officers must ensure that searches are conducted in a manner that respects the rights and privacy of individuals. The copying of our devices, particularly when no active charges were pending against us, was an unjustified overreach of power and lacked appropriate oversight.

2. **Violation of Legal Professional Privilege**:

    - Legal Professional Privilege (LPP) is a fundamental right protected by law, including in ABF operational policies, which require that privileged documents be handled with special care. Despite my objections, the ABF officers copied legally privileged documents from our devices. We were laos refused contact with our lawfirm to assert the LPP.
    - **ABF guidelines** mandate that if LPP is asserted, the officers must respect it unless they have explicit legal authority to override it—usually requiring a warrant or court order. The copying of my privileged documents without proper authorization was a direct violation of this privilege and of procedural fairness.

3. **Failure to Provide Documentation and Act Transparently**:

    - When I requested a certificate or acknowledgment of the copying of my LPP documents, the officers **refused to provide it.** Under ABF guidelines, transparency and accountability are crucial when conducting searches of sensitive materials. The refusal to document their actions not only raises concerns about their legality but also breaches ABF's duty to maintain transparency.

4. **Treatment of Vulnerable Individuals**:

    - According to the **ABF Code of Conduct** and international human rights obligations, including Australia's commitments under the **International Covenant on Civil and Political Rights (ICCPR)**, individuals must be treated with dignity, respect, and without discrimination. The actions taken during the search of my disabled son's belongings—despite him experiencing extreme distress and panic—constituted a breach of the **Disability Discrimination Act (1992)** and ABF's own policies regarding the treatment of vulnerable persons.
    - The officers failed to make any reasonable accommodations for my son's disabilities, which resulted in unnecessary distress. This disregard for his condition violated the principles of care and non-discrimination that are fundamental to the **Disability Discrimination Act** and **ICCPR.**

Legal Precedents:

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I would like to bring to your attention the following legal precedents and established rights, which highlight the gravity and unlawfulness of the actions taken by the ABF officers:

1. **Haneef Case (2007)**: In this case, Dr. Mohamed Haneef was unlawfully detained by Australian authorities without substantial grounds. He successfully sued for wrongful detention and defamation, and was awarded compensation. I believe my situation bears similarities, especially considering the absence of active charges against me and the threats of continued detention. I request an investigation into why such treatment is persisting, despite the fact that all charges against me have been dropped.
2. **Legal Professional Privilege Protection**: The unauthorized copying of my legally privileged documents by ABF officers represents a direct violation of Legal Professional Privilege. The courts have consistently upheld LPP rights as a fundamental principle protecting confidential communications between a client and their lawyer. This violation warrants immediate investigation and accountability for the officers involved.
3. **International Human Rights Law - ICCPR**: Australia is a signatory to the **International Covenant on Civil and Political Rights (ICCPR)**, which protects individuals from arbitrary detention (Article 9) and ensures protection against arbitrary interference with privacy (Article 17). The actions taken by ABF, including the detention, search, and copying of my personal documents, as well as threats of future detention, violate these fundamental rights.
4. **Disability Discrimination Act (1992)**: The treatment of my disabled son during the search of our belongings, which caused him extreme distress, violates the **Disability Discrimination Act.** The officers failed to make reasonable accommodations for his disabilities and caused significant emotional distress, constituting discriminatory behavior by a government authority.

My Request:

I demand that your office investigate this incident thoroughly and take the following actions:

1. **Justification**: Investigate whether the actions of ABF were lawful, especially concerning the lack of a warrant.
2. **LPP Violation**: Address the breach of my Legal Professional Privilege and the unauthorized photocopying of my legal documents.
3. **Accountability**: Hold the responsible officers accountable for harassment, unlawful detention, and violation of privacy.
4. **Reparations**: Explore the appropriate remedies for the infringement on my rights and the distress caused by these actions.
5. **Future Travel**: Clarify the basis for the threat that we will be detained every time we travel and ensure this threat is retracted if no lawful grounds exist.
6. **Protection of Legal Professional Privilege (LPP)**: Ensure that any LPP material that has been extracted is not used. We maintain our LPP privilege and rights. You are on notice.

Australian Border Force's role is to protect and secure the borders of Australia, not to be used as a tool for thuggery to bypass established legal protections and due process in Australia. This is now the 3rd time you have done this to us.

I trust that your office will handle this matter seriously, and I look forward to your response on how this issue will be addressed. I demand a response and explanation within **7 business days.**

For any clarifications or updates regarding the progress of this matter, I can be contacted directly on this email and/or on mobile 0478880685 Given the urgency of this issue, I expect priority handling.

Sincerely,

Vida Reid

Released by Department of Home Affairs under the *Freedom of Information Act 1982*

Important Notice: The content of this email is intended only for use by the individual or entity to whom it is addressed. If you have received this email by mistake, please advise the sender and delete the message and attachments immediately. This email, including attachments, may contain confidential, sensitive, legally privileged and/or copyright information.

Any review, retransmission, dissemination or other use of this information by persons or entities other than the intended recipient is prohibited. The Department of Home Affairs, the ABF and the National Emergency Management Agency respect your privacy and have obligations under the Privacy Act 1988.

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under the *Freedom of Information Act 1982*

Documents in Scope within ADF2024/261542

Feedback successfully sent

Thank you for your feedback which has been sent to the Department.

The Reference Number for this feedback is: **IMMI-24-32444**

You will receive an acknowledgement email in the near future unless you have selected to submit your feedback anonymously.

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under the *Freedom of Information Act 1982*

Documents in Scope within ADF2024/261542

https://www.homeaffairs.gov.au/help-and-support/departmental-forms/online-forms/complaints-compliments-and-suggestions#

The Department of Home Affairs has launched a website translation service on an initial limited number of pages. A language selector will appear at the top right-hand corner of pages that are translated.

Australian Government
Department of Home Affairs

ImmiAccount | Visa Entitlement Verification Online (VEVO)

Home | About us | Reports and publications | Research and statistics | Corporate information | Help and support | News and media | More

Home → Help and support → Departmental forms → Online forms

Feedback successfully sent

Thank you for your feedback which has been sent to the Department.

The Reference Number for this feedback is: **IMMI-24-32445**

You will receive an acknowledgement email in the near future unless you have selected to submit your feedback anonymously.

Last updated: 10 July 2024 | Print this page

Contact

Do you have a question, feedback or a complaint? Let us help you find the right answer.

Contact us

Home Affairs

Home Affairs Portfolio
Australian Border Force
National Security
Transport Security

What we do

Who we are
Our Ministers
Contact our Ministers
Careers

Released by Department of Home Affairs
under the *Freedom of Information Act 1982*

From: s. 22(1)(a)(ii)
To: s. 22(1)(a)(ii)
Cc: s. 22(1)(a)(ii)
Subject: FEEDBACK (IMMI-24-32444-1) Vida REID Assigned to you for response [SEC=OFFICIAL: Sensitive]
Date: Tuesday, 8 October 2024 12:49:34 PM
Attachments: ATT00001
IMMI-24-32444 GFU Complaint Acknowledgement (08-Oct-2024 12 35).docx
IMMI-24-32444 Feedback Details 08-Oct-2024(1).doc

Dear s. 22(1)(a)(ii)

The attached feedback (IMMI-24-32444-1) was received by the Global Feedback Unit (GFU) from Mrs Vida REID on 7 October 2024.

This feedback is forwarded to you for investigation and response.

s. 47E(d)

Your response to the client should be sent by email (unless the client has specified otherwise), with a copy (CC) to the GFU at s. 22(1)(a)(ii)

If a response is provided verbally to the client, please email the GFU at the above address advising the details (i.e. the method of delivery, date, time and a summary of the conversation).

Your responses should be completed within 15 working days, as per the service standards prescribed in the *Client Feedback Policy* s. 47E(d) . If a response is not received within this timeframe, the case will be escalated to your Commander for follow-up.

s. 47E(d)

If this feedback has been incorrectly allocated to your business area, please notify the GFU as soon as possible, as service standards commence from the date of the original referral.

Further information about responding to feedback can be located in the *Client Feedback Standard Operating Procedures* s. 47E(d)

If you have any questions or require additional information, please contact the GFU by email.

Regards

s. 22(1)(a)(ii)

Feedback Officer
Global Feedback Unit
Service Delivery Operation Branch | Service Design and Delivery Programs
Immigration Group
Department of Home Affairs
E: s. 22(1)(a)(ii)

8 October 2024

Released by Department of Home Affairs under the *Freedom of Information Act 1982*

IMMI-24-32444

Identified Issues
ISSUE: IMMI-24-32444-1
Issue Type: Complaint Issue: Air and Sea Traveller > Outward Processing > Questioning Primary Issue: Yes
RBA Contact: s. 22(1)(a)(ii) Position number: 49005084 RBA Org Unit: U_AVIATION MANAGEMENT WA Org Unit ID: s. 47D Cost Centre:
Generic Email: Aviation WA Complaints

Receipt Details			
Received On:	7 October 2024	How Received:	
Feedback Type:	Complaint	Sensitive:	**No**

Feedback submitted by			
Name:	REID, Vida		
Client Type:	Traveller		
ICSE Number:	17111227309		
Phone MB:	0478 886 805	Email:	vida_reid@yahoo.com

Summary
GFU NOTE: This case has been merged with IMMI-24-32445 Subject of your feedback: Travellers Type of feedback: Complaint Do you wish your feedback to be anonymous?: No Client type: Traveller What is the nature of your feedback?: Search/examination Are you providing feedback on behalf of someone else?: No Your passport number: PA9637952 Flight Number: QZ537 Date of arrival/departure: 25/09/2024 Name of Australian air or sea port: Peth Airport part 1 of 2 Good Afternoon,

Released by Department of Home Affairs under the *Freedom of Information Act 1982*

I am writing to lodge a formal complaint regarding a serious distressing incident involving unlawful detention, harassment, and violation of Legal Professional Privilege (LPP) by Australian Border Force (ABF) officers during my travel from Perth to Bali on 25th September 2024. My husband and I were detained by ABF officers at Perth Airport prior to our departure for about 3 hours, where our electronic devices were confiscated and searched without a warrant.

I would like to emphasize the extent to which the actions of the Australian Border Force (ABF) officers during our travel on 25th September 2024 violated established laws and guidelines governing their conduct. Specifically, I refer to provisions of the Australian Border Force Act 2015, Customs Act 1901, and relevant ABF operational guidelines. These actions included unlawful detention, violation of Legal Professional Privilege, and mistreatment of our disabled child.

Incident Summary:

Date and Location: 25th September 2024, at Perth Airport, while attempting to depart for Bali.
Confiscated Devices: Our phones and laptops were confiscated, and we were advised the contents were copied without our consent or a warrant at the instructions and request of the NDIS and NDIS taskforce.
Violation of Legal Professional Privilege: Despite my objections, ABF officers photocopied documents that are protected under LPP.
No Certification Provided: When I requested a certificate confirming the copying of my legally privileged documents, any actions they are taking with our devices etc, ABF officers refused to provide one. Furthermore, we were refused contact with our law firm to assert this privilege.
Phone confiscated: My husband?s phone was taken due to him not remembering his pin code despite the phone being unlocked already and the Border Force personnel insinuated he is a liar for not remembering it. They got aggressive with my husband stating they cannot copy the content over if they don?t have the pin even though the phone is unlocked. They stated they can?t tell my husband if or when he will have his phone back.
· Search of Luggage and Disabled Child?s Items: The officers removed our luggage from the plane and went as far as searching through my disabled son's belongings and his little bag of story books he was holding.

· My son has six disabilities, including autism level 3, is non-verbal, and was extremely distressed by the situation. During the search, he was screaming, running around in panic, and completely overwhelmed. Despite this, the officers continued their actions, disregarding his condition and the emotional toll on him.

Threats of Future Detention: ABF officers, including s. 22(1)(a)(ii) advised us that we will be detained every time we travel in the future as per the NIDS instructions and each time all of our data will continuously be collected, without providing any justification for such a threat.
When questioned several times, The Border Force employees stated that they were following instructions from the National Disability Insurance Scheme (NDIS) to bypass the legal requirement of obtaining a warrant, which is highly irregular and raises concerns of unlawful detention and surveillance targeting individuals including children with disabilities.

This conduct has caused extreme distress, as we were treated unlawfully, had our privacy breached, and were subjected to intimidation with the threat of future detentions.

Released by Department of Home Affairs under the *Freedom of Information Act 1982*

Violations:

Unlawful Search and Seizure of Devices Without a Warrant:
The Customs Act 1901 grants ABF officers powers to search and seize items, but only under specific conditions and with reasonable grounds for suspicion. In this instance, the confiscation and copying of our electronic devices without a warrant or proper justification breaches both the Customs Act and the Australian Border Force Act 2015.
Furthermore, according to ABF guidelines, officers must ensure that searches are conducted in a manner that respects the rights and privacy of individuals. The copying of our devices, particularly when no active charges were pending against us, was an unjustified overreach of power and lacked appropriate oversight.

Violation of Legal Professional Privilege:
Legal Professional Privilege (LPP) is a fundamental right protected by law, including in ABF operational policies, which require that privileged documents be handled with special care. Despite my objections, the ABF officers copied legally privileged documents from our devices. We were laos refused contact with our lawfirm to assert the LPP.
ABF guidelines mandate that if LPP is asserted, the officers must respect it unless they have explicit legal authority to override it?usually requiring a warrant or court order. The copying of my privileged documents without proper authorization was a direct violation of this privilege and of procedural fairness.

MERGED CASE IMMI-24-32445

Feedback: Part 2 of 2 Failure to Provide Documentation and Act Transparently: When I requested a certificate or acknowledgment of the copying of my LPP documents, the officers refused to provide it. Under ABF guidelines, transparency and accountability are crucial when conducting searches of sensitive materials. The refusal to document their actions not only raises concerns about their legality but also breaches ABF's duty to maintain transparency. Treatment of Vulnerable Individuals: According to the ABF Code of Conduct and international human rights obligations, including Australia's commitments under the International Covenant on Civil and Political Rights (ICCPR), individuals must be treated with dignity, respect, and without discrimination. The actions taken during the search of my disabled son's belongings—despite him experiencing extreme distress and panic—constituted a breach of the Disability Discrimination Act (1992) and ABF's own policies regarding the treatment of vulnerable persons. The officers failed to make any reasonable accommodations for my son's disabilities, which resulted in unnecessary distress. This disregard for his condition violated the principles of care and non-discrimination that are fundamental to the Disability Discrimination Act and ICCPR. Legal Precedents: I would like to bring to your attention the following legal precedents and established rights, which highlight the gravity and unlawfulness of the actions taken by the ABF officers: Haneef Case (2007): In this case, Dr. Mohamed Haneef was unlawfully detained by Australian authorities without substantial grounds. He successfully sued for wrongful detention and defamation, and was awarded compensation. I believe my situation bears similarities, especially considering the absence of active charges against me and the threats of continued detention. I request an investigation into why such treatment is persisting, despite the fact that all charges against me have been dropped. Legal Professional Privilege Protection: The unauthorized copying of my legally privileged documents by ABF officers represents a direct violation of Legal Professional Privilege. The courts have consistently upheld LPP rights as a fundamental principle protecting confidential communications between a client and their lawyer.

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This violation warrants immediate investigation and accountability for the officers involved. International Human Rights Law - ICCPR: Australia is a signatory to the International Covenant on Civil and Political Rights (ICCPR), which protects individuals from arbitrary detention (Article 9) and ensures protection against arbitrary interference with privacy (Article 17). The actions taken by ABF, including the detention, search, and copying of my personal documents, as well as threats of future detention, violate these fundamental rights. Disability Discrimination Act (1992): The treatment of my disabled son during the search of our belongings, which caused him extreme distress, violates the Disability Discrimination Act. The officers failed to make reasonable accommodations for his disabilities and caused significant emotional distress, constituting discriminatory behavior by a government authority. My Request: I demand that your office investigate this incident thoroughly and take the following actions: Justification: Investigate whether the actions of ABF were lawful, especially concerning the lack of a warrant. LPP Violation: Address the breach of my Legal Professional Privilege and the unauthorized photocopying of my legal documents. Accountability: Hold the responsible officers accountable for harassment, unlawful detention, and violation of privacy. Reparations: Explore the appropriate remedies for the infringement on my rights and the distress caused by these actions. Future Travel: Clarify the basis for the threat that we will be detained every time we travel and ensure this threat is retracted if no lawful grounds exist. Protection of Legal Professional Privilege (LPP): Ensure that any LPP material that has been extracted is not used. We maintain our LPP privilege and rights. You are on notice. Australian Border Force's role is to protect and secure the borders of Australia, not to be used as a tool for thuggery to bypass established legal protections and due process in Australia. This is now the 3rd time you have done this to us. I trust that your office will handle this matter seriously, and I look forward to your response on how this issue will be addressed. I demand a response and explanation within 7 business days. Vida Reid

Released by Department of Home Affairs under the *Freedom of Information Act 1982*

Acknowledgement of feedback

Dear Mrs REID

The Department of Home Affairs has received your feedback on 7 October 2024. Feedback on our processes and services is important and we thank you for bringing this matter to our attention.

This matter has been referred to the relevant business area for action. We aim to provide a response within 15 working days of this email.

Your Feedback Case Number is IMMI-24-32444. You should quote this number in any further enquiries relating to this matter.

Yours sincerely

s. 22(1)(a)(ii)
Global Feedback Unit
Department of Home Affairs

8 October 2024

Released by Department of Home Affairs
under the *Freedom of Information Act 1982*

From: s. 22(1)(a)(ii)
To: s. 22(1)(a)(ii)
Subject: Complaint: REID, Vida (F) 11JAN1987 [SEC=OFFICIAL:Sensitive]
Date: Wednesday, 9 October 2024 3:48:05 PM

OFFICIAL: Sensitive

Hi s. 22(1)(a)(ii)

The complainant stated they are aware as to why they were subject to Law Enforcement interest.
The complainant stated that they had court proceedings against them from the NDIS dropped.
The complainant was then told ABF are completing a baggage examination on behalf of another agency.

ABF advised that they would need to speak with AFP or their Lawyer if charges against them have been dropped and that the examination would still need to take place.

The complainant was not advised at any time they were detained or being detained or the subject of an alert.
The complainant asked if they would be subject to examination in the future as this isn't the first time they've been examined for this.

The complainant was not told at any time that ABF were following instructions from the National Disability Insurance Scheme (NDIS)……
Complainant was the only one to mention NDIS and stating someone had set her up.

The complainant asked ABF will I be examined all the time.
The complainant was told by ABF that they may be subject to examination for future travel.

In regards to LPP the complaint advised ABF that her laptop/iPad contained LPP material. (This was put aside by ABF but not examined).

Only devices examined were 2 x Mobile devices. 1 examined and 1 held pending examination.

Pax also advised that documentation in her possession contained LPP. s. 37(2)(b)
s. 37(2)(b)

s. 37(2)(b)

s. 37(2)(b)

Kind Regards

Released by Department of Home Affairs under the *Freedom of Information Act 1982*

s. 22(1)(a)(ii)
Leading Border Force Officer
Aviation Travellers Team | Aviation Operations
Operations West
North, West & Detention Group
Australian Border Force
s. 22(1)(a)(ii)

OFFICIAL: Sensitive

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under the *Freedom of Information Act 1982*

s. 42(1)

Released by Department of Home Affairs
under the *Freedom of Information Act 1982*

s. 42(1)

Released by Department of Home Affairs
under the *Freedom of Information Act 1982*

From: s. 22(1)(a)(ii)
To: s. 22(1)(a)(ii)
Subject: RE: Complaint: REID, Vida (F) 11JAN1987 (IMMI-24-32444) [SEC=OFFICIAL:Sensitive]
Date: Wednesday, 9 October 2024 5:21:39 PM

OFFICIAL: Sensitive

Hi s. 22(1)(a)(ii)

Please find additional comments from s. 22(1)(a)(ii) below.

Regards
s. 22(1)(a)(ii)
Duty Manager | Aviation Operations
Operations West
Maritime & Detention Operations Group
Australian Border Force
s. 22(1)(a)(ii)

OFFICIAL: Sensitive

From: s. 22(1)(a)(ii)
Sent: Wednesday, 9 October 2024 1:21 PM
To: s. 22(1)(a)(ii)
Cc: s. 22(1)(a)(ii)
s. 22(1)(a)(ii)
s. 22(1)(a)(ii)
Subject: FW: Complaint: REID, Vida (F) 11JAN1987 (IMMI-24-32444) [SEC=OFFICIAL:Sensitive]

OFFICIAL: Sensitive

Hi s. 22(1)(a)(ii)

Given the nature of the complaint and on reviewing s. 22(1)(a)(ii) response below, there are further questions as provided in red. Could you please follow up – many thanks.

Kind regards,

s. 22(1)(a)(ii)
Supervisor Aviation Management WA
Aviation |Operations West
Regional Operations West
Australian Border Force
s. 22(1)(a)(ii)

Released by Department of Home Affairs under the *Freedom of Information Act 1982*

OFFICIAL: Sensitive

From: s. 22(1)(a)(ii)
Sent: Wednesday, 9 October 2024 12:48 PM
To: s. 22(1)(a)(ii)
Subject: Complaint: REID, Vida (F) 11JAN1987 [SEC=OFFICIAL:Sensitive]

OFFICIAL: Sensitive

Hi s. 22(1)(a)(ii

The complainant stated they are aware as to why they were subject to Law Enforcement interest.
The complainant stated that they had court proceedings against them from the NDIS dropped.
The complainant was then told ABF are completing a baggage examination on behalf of another agency. – To Clarify: Did ABF tell the complainant that the Baggage Exam was on behalf of another agency?

From my recollection Pax stated I know why I'm here and all charges have been dropped in regards to the NDIS.
Pax was then told by ABF we still need to complete the examination. Pax stated why as this has been dropped.
ABF told the Pax as we are not aware charges have been dropped and were conducting the examination on behalf of another agency.

ABF advised that they would need to speak with AFP or their Lawyer if charges against them have been dropped and that the examination would still need to take place. s. 47E(d)
s. 47E(d)

This was said because the Pax stated charges have been dropped. Pax also stated how can they stop this from happening for future travel. That's why the complainant was advised.

The complainant was not advised at any time they were detained or being detained or the subject of an alert.
The complainant asked if they would be subject to examination in the future as this isn't the first time they've been examined for this. What was our response to this?

Response was they may or may not be subject to future examinations.

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The complainant was not told at any time that ABF were following instructions from the National Disability Insurance Scheme (NDIS)……
Complainant was the only one to mention NDIS and stating someone had set her up.

The complainant asked ABF will I be examined all the time.
The complainant was told by ABF that they may be subject to examination for future travel.

In regards to LPP the complaint advised ABF that her laptop/iPad contained LPP material. (This was put aside by ABF but not examined). To confirm, the claimant did not at any point advise the ABF that the mobile phones contained LPP material, only the Laptop and iPad?

I overheard Pax state laptop/ipad contains LPP. I can't comment in regards to the mobile devices as In did not conduct the examination and had very little conversation with the Pax.

Only devices examined were 2 x Mobile devices. 1 examined and 1 held pending examination.

s. 37(2)(b)

s. 37(2)(b)

s. 37(2)(b)

Kind Regards

s. 22(1)(a)(ii)
Leading Border Force Officer
Aviation Travellers Team | Aviation Operations
Operations West
North, West & Detention Group
Australian Border Force
s. 22(1)(a)(ii)

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OFFICIAL: Sensitive

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under the *Freedom of Information Act 1982*

s. 47E(d)

Released by Department of Home Affairs
under the *Freedom of Information Act 1982*

s. 47E(d)

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under the *Freedom of Information Act 1982*

s. 47E(d)

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under the *Freedom of Information Act 1982*

s. 47E(d)

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under the *Freedom of Information Act 1982*

From: s. 22(1)(a)(ii)
To:
Cc:
Subject: FW: Complaint: REID, Vida (F) 11JAN1987 (IMMI-24-32444) [SEC=OFFICIAL:Sensitive]
Date: Wednesday, 9 October 2024 4:35:27 PM
Attachments: Complaint REID Vida (F) 11JAN1987 SECOFFICIALSensitive.msg

OFFICIAL: Sensitive

Hi s. 22(1)(a)(ii)

Similar to my response to s. 22(1)(a)(ii) account, please find my additional questions in Red below for follow up.

Kind regards,

s. 22(1)(a)(ii)
Supervisor Aviation Management WA
Aviation |Operations West
Regional Operations West
Australian Border Force
s. 22(1)(a)(ii)

OFFICIAL: Sensitive

From: s. 22(1)(a)(ii)
Sent: Wednesday, 9 October 2024 12:50 PM
To: s. 22(1)(a)(ii)
Subject: RE: Complaint: REID, Vida (F) 11JAN1987 [SEC=OFFICIAL:Sensitive]

OFFICIAL: Sensitive

Hi s. 22(1)(a)(ii)

Please find attached overview from the supervising officer involved s. 47E(d) additional response from s. 22(1)(a)(ii) below:

The complainant has stated several times that she was told they were subject to an alert and that:

- advised us that we will be detained every time we travel in the future as per the NIDS instructions and each time all of our data will continuously be collected….

- The passenger was never detained or advised that they would be detained in the

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future, officers did not use that narrative. Additionally ABF did not carry out a 219 frisk search which would cause a passenger to be detained. ABF stated that the passenger may still be subject to baggage examination when travelling through an International port. ABF officers offered for her husband to leave and process through airport security with their children, however he declined and chose to stay with his wife. s. 37(2)(b)
s. 37(2)(b)
s. 37(2)(b)

- The Border Force employees stated that they were following instructions from the National Disability Insurance Scheme (NDIS)……

- The passenger initiated this and asked ABF officers if the baggage examination had anything to do with NDIS. ABF officers then asked if she had been in any trouble with any law enforcement agencies previously? To which the passenger replied 'yes NDIS, I had to sell my house to pay approx. AUD 850,000 in legal fees'. Did ABF provide any response to her question on if the baggage exam had anything to do with NDIS – If so, what was our response?

s. 37(2)(b)

Further, could the officers involved please comment regarding their response to the claims for LPP by the complainant – for example: did they seek advice from a Supervisor before proceeding to examine the devices?

- The only devices examined were two mobile devices. One mobile device was examined and one mobile device was held pending examination due to the Husband not providing his PIN. The passenger also advised that documentation in her possession contained LPP. s. 37(2)(b)

s. 37(2)(b)

Regards
s. 22(1)(a)(ii)
Duty Manager | Aviation Operations
Operations West
Maritime & Detention Operations Group
Australian Border Force

s. 22(1)(a)(ii)

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OFFICIAL: Sensitive

From: s. 22(1)(a)(ii)
Sent: Wednesday, 9 October 2024 7:32 AM
To: s. 22(1)(a)(ii)
s. 22(1)(a)(ii)
Cc: s. 22(1)(a)(ii)
s. 22(1)(a)(ii)
Subject: RE: Complaint: REID, Vida (F) 11JAN1987 [SEC=OFFICIAL:Sensitive]

OFFICIAL: Sensitive

Hi s. 22(1)(a)(ii)

Thank you for this initial response from s. 22(1)(a)(ii) However there are a few points that still need to be addressed –

The complainant has stated several times that she was told they were subject to an alert and that:

- advised us that we will be detained every time we travel in the future as per the NIDS instructions and each time all of our data will continuously be collected….
- The Border Force employees stated that they were following instructions from the National Disability Insurance Scheme (NDIS)……

s. 37(2)(b)

Further, could the officers involved please comment regarding their response to the claims for LPP by the complianant – for example: did they seek advice from a Supervisor before proceeding to examine the devices?

s. 37(2)(b)

Kind regards,

s. 22(1)(a)(ii)
Supervisor Aviation Management WA
Aviation |Operations West
Regional Operations West
Australian Border Force
s. 22(1)(a)(ii)

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OFFICIAL: Sensitive

From: s. 22(1)(a)(ii)
Sent: Tuesday, 8 October 2024 3:57 PM
To: s. 22(1)(a)(ii)
Subject: RE: Complaint: REID, Vida (F) 11JAN1987 [SEC=OFFICIAL:Sensitive]

OFFICIAL: Sensitive

Hi s. 22(1)(a)(ii)

Please find below comments from s. 22(1)(a)(ii) who conducted the outwards baggage examination s. 37(2) s. 37(2)(b)

- My son has six disabilities, including autism level 3, is non-verbal, and was extremely distressed by the situation. During the search, he was screaming, running around in panic, and completely overwhelmed. Despite this, the officers continued their actions, disregarding his condition and the emotional toll on him.
  - At the start of the interaction with the passenger and her family I personally advised her that I had dealt with children in the past who are Autistic and tried to reassure her that I would do everything I could to make this process as smooth as possible. s. 22(1) s. 22(1)(a)(ii)

    I asked the passenger if she would prefer that her son sit with their elder daughter in the seating area at the outwards referrals area, which she agreed was a good idea. The child was restless there, so after some time I offered him a chair at the bench in the outwards examination area, so he could be close to his parents.

    Their son was also restless in the outwards examination area and he continually tried to play with the ABF cabinet x-ray, upon seeing this my senior ABF officer disabled the x-ray so the child could continue to run his hands over the rollers and play with the x-ray curtains.
    I also offered both of their children some water from the drinking fountain to which they politely accepted.

- Threats of Future Detention: ABF officers, including s. 22(1)(a)(ii) advised us that we will be detained every time we travel in the future as per the NIDS instructions and each time all of our data will continuously be collected, without providing any justification for such a threat.
  - All passengers were at no time detained s. 37(2)(b)

s. 37(2)(b)

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s. 37(2)(b)

Nothing was retained from the mobile devices, the mobile devices were only examined. Under s186 of the Customs Act.

There was nil data retained from any mobile device as per the DDE form. The examination was also cut short and abandoned to allow the passenger and her family time, to board their outbound flight to Bali.

The passenger husband's mobile device was held on a B390 form, he was unable to provide ABF with the PIN over multiple requests and failed attempts to unlock that device. ABF advised that the mobile device would then be held and sent for digital device examination.

- When questioned several times, The Border Force employees stated that they were following instructions from the National Disability Insurance Scheme (NDIS) to bypass the legal requirement of obtaining a warrant, which is highly irregular and raises concerns of unlawful detention and surveillance targeting individuals including children with disabilities.
  - s. 37(2)(b)

    ABF officers offered for the husband to take himself and the children through to Airport security, as we were at that stage of only dealing with the passenger's mobile device.

    I believe that myself and my senior ABF officer acted professionally, courteously and were extremely sensitive to the fact that the passenger had a child with disabilities travelling with her during examination.

Regards
s. 22(1)(a)(ii)
Duty Manager | Aviation Operations
Operations West
Maritime & Detention Operations Group
Australian Border Force
s. 22(1)(a)(ii)

OFFICIAL: Sensitive

From: s. 22(1)(a)(ii)

Released by Department of Home Affairs under the *Freedom of Information Act 1982*

Sent: Tuesday, 8 October 2024 7:59 AM
To: s. 22(1)(a)(ii)
s. 22(1)(a)(ii)
Cc: s. 22(1)(a)(ii)
s. 22(1)(a)(ii)
Subject: Complaint: REID, Vida (F) 11JAN1987 [SEC=OFFICIAL:Sensitive]

OFFICIAL: Sensitive

Good morning s. 22(1)(a)(ii)

OSCG Perth have received the below complaint. While the complainant has been re-directed to GFU to formally lodge her complaint we are in the process of gathering information in relation to the event.

Could you please review the below and investigate with the team and provide a response by the end of this block – If you could ensure the following points of her complaint are addressed as a start:

- My son has six disabilities, including autism level 3, is non-verbal, and was extremely distressed by the situation. During the search, he was screaming, running around in panic, and completely overwhelmed. Despite this, the officers continued their actions, disregarding his condition and the emotional toll on him.
- Threats of Future Detention: ABF officers, including s. 22(1)(a)(ii) advised us that we will be detained every time we travel in the future as per the NIDS instructions and each time all of our data will continuously be collected, without providing any justification for such a threat.
- When questioned several times, The Border Force employees stated that they were following instructions from the National Disability Insurance Scheme (NDIS) to bypass the legal requirement of obtaining a warrant, which is highly irregular and raises concerns of unlawful detention and surveillance targeting individuals including children with disabilities.

s. 47E(d)

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s. 47E(d)

Kind regards,

s. 22(1)(a)(ii)
Supervisor Aviation Management WA
Aviation |Operations West
Regional Operations West
Australian Border Force
s. 22(1)(a)(ii)

OFFICIAL: Sensitive

From: vida Reid <vida_reid@yahoo.com>
Sent: Friday, 4 October 2024 12:49 PM
To: s. 22(1)(a)(ii)
s. 22(1)(a)(ii)
Cc: Perth Magistrates Court <perthmagistratescourt@justice.wa.gov.au>; Simon Reid <reid.simon4@gmail.com>; s. 22(1)(a)(ii)
Subject: Harassment, unlawful detention and seizure of electronic of 4 devices by ABF at request of NDIS and NDIS minister

Good Afternoon,

I am writing to lodge a formal complaint regarding a serious distressing incident involving unlawful detention, harassment, and violation of Legal Professional Privilege (LPP) by Australian Border Force (ABF) officers during my travel from **Perth to Bali on 25th September 2024**. My husband and I were detained by ABF officers at **Perth Airport** prior to our departure for about 3 hours, where our electronic devices were confiscated and searched without a warrant.

I would like to emphasize the extent to which the actions of the Australian Border Force (ABF) officers during our travel on **25th September 2024** violated established laws and guidelines governing their conduct. Specifically, I refer to provisions of the **Australian Border Force Act 2015**, **Customs Act 1901**, and relevant ABF operational guidelines. These actions included unlawful detention, violation of Legal Professional Privilege, and mistreatment of our disabled child.

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Incident Summary:

- **Date and Location**: 25th September 2024, at **Perth Airport**, while attempting to depart for Bali.
- **Confiscated Devices**: Our phones and laptops were confiscated, and we were advised the contents were copied without our consent or a warrant at the instructions and request of the NDIS and NDIS taskforce.
- **Violation of Legal Professional Privilege**: Despite my objections, ABF officers photocopied documents that are protected under LPP.
- **No Certification Provided**: When I requested a certificate confirming the copying of my legally privileged documents, any actions they are taking with our devices etc, ABF officers refused to provide one. Furthermore, we were refused contact with our law firm to assert this privilege.
- **Phone confiscated**: My husband's phone was taken due to him not remembering his pin code despite the phone being unlocked already and the Border Force personnel insinuated he is a liar for not remembering it. They got aggressive with my husband stating they cannot copy the content over if they don't have the pin even though the phone is unlocked. They stated they can't tell my husband if or when he will have his phone back.

- **Search of Luggage and Disabled Child's Items**: The officers removed our luggage from the plane and went as far as searching through my disabled son's belongings and his little bag of story books he was holding.

- My son has six disabilities, including **autism level 3**, is **non-verbal**, and was extremely distressed by the situation. During the search, he was **screaming, running around in panic**, and completely overwhelmed. Despite this, the officers continued their actions, disregarding his condition and the emotional toll on him.

- **Threats of Future Detention**: ABF officers, including s. 22(1)(a)(ii) advised us that we will be detained every time we travel in the future as per the NIDS instructions and each time all of our data will continuously be collected, without providing any justification for such a threat.

When questioned several times, The Border Force employees stated that they were following instructions from the **National Disability Insurance Scheme (NDIS)** to bypass the legal requirement of obtaining a warrant, which is highly irregular and raises concerns of unlawful detention and surveillance targeting individuals including children with disabilities.

This conduct has caused extreme distress, as we were treated unlawfully, had our privacy breached, and were subjected to intimidation with the threat of future detentions.

Violations:

1. **Unlawful Search and Seizure of Devices Without a Warrant**:
    - The **Customs Act 1901** grants ABF officers powers to search and seize items, but only under specific conditions and with reasonable grounds for suspicion. In this instance, the **confiscation and copying of our electronic devices without a warrant or proper**

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justification breaches both the **Customs Act** and the **Australian Border Force Act 2015**.
- Furthermore, according to **ABF guidelines**, officers must ensure that searches are conducted in a manner that respects the rights and privacy of individuals. The copying of our devices, particularly when no active charges were pending against us, was an unjustified overreach of power and lacked appropriate oversight.

2. **Violation of Legal Professional Privilege**:

    - Legal Professional Privilege (LPP) is a fundamental right protected by law, including in ABF operational policies, which require that privileged documents be handled with special care. Despite my objections, the ABF officers copied legally privileged documents from our devices. We were laos refused contact with our lawfirm to assert the LPP.
    - **ABF guidelines** mandate that if LPP is asserted, the officers must respect it unless they have explicit legal authority to override it—usually requiring a warrant or court order. The copying of my privileged documents without proper authorization was a direct violation of this privilege and of procedural fairness.

3. **Failure to Provide Documentation and Act Transparently**:

    - When I requested a certificate or acknowledgment of the copying of my LPP documents, the officers **refused to provide it**. Under ABF guidelines, transparency and accountability are crucial when conducting searches of sensitive materials. The refusal to document their actions not only raises concerns about their legality but also breaches ABF's duty to maintain transparency.

4. **Treatment of Vulnerable Individuals**:

    - According to the **ABF Code of Conduct** and international human rights obligations, including Australia's commitments under the **International Covenant on Civil and Political Rights (ICCPR)**, individuals must be treated with dignity, respect, and without discrimination. The actions taken during the search of my disabled son's belongings—despite him experiencing extreme distress and panic—constituted a breach of the **Disability Discrimination Act (1992)** and ABF's own policies regarding the treatment of vulnerable persons.
    - The officers failed to make any reasonable accommodations for my son's disabilities, which resulted in unnecessary distress. This disregard for his condition violated the principles of care and non-discrimination that are fundamental to the **Disability Discrimination Act** and **ICCPR**.

Legal Precedents:

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I would like to bring to your attention the following legal precedents and established rights, which highlight the gravity and unlawfulness of the actions taken by the ABF officers:

1. **Haneef Case (2007)**: In this case, Dr. Mohamed Haneef was unlawfully detained by Australian authorities without substantial grounds. He successfully sued for wrongful detention and defamation, and was awarded compensation. I believe my situation bears similarities, especially considering the absence of active charges against me and the threats of continued detention. I request an investigation into why such treatment is persisting, despite the fact that all charges against me have been dropped.
2. **Legal Professional Privilege Protection**: The unauthorized copying of my legally privileged documents by ABF officers represents a direct violation of Legal Professional Privilege. The courts have consistently upheld LPP rights as a fundamental principle protecting confidential communications between a client and their lawyer. This violation warrants immediate investigation and accountability for the officers involved.
3. **International Human Rights Law - ICCPR**: Australia is a signatory to the **International Covenant on Civil and Political Rights (ICCPR)**, which protects individuals from arbitrary detention (Article 9) and ensures protection against arbitrary interference with privacy (Article 17). The actions taken by ABF, including the detention, search, and copying of my personal documents, as well as threats of future detention, violate these fundamental rights.
4. **Disability Discrimination Act (1992)**: The treatment of my disabled son during the search of our belongings, which caused him extreme distress, violates the **Disability Discrimination Act**. The officers failed to make reasonable accommodations for his disabilities and caused significant emotional distress, constituting discriminatory behavior by a government authority.

My Request:

I demand that your office investigate this incident thoroughly and take the following actions:

1. **Justification**: Investigate whether the actions of ABF were lawful, especially concerning the lack of a warrant.
2. **LPP Violation**: Address the breach of my Legal Professional Privilege and the unauthorized photocopying of my legal documents.
3. **Accountability**: Hold the responsible officers accountable for harassment, unlawful detention, and violation of privacy.
4. **Reparations**: Explore the appropriate remedies for the infringement on my rights and the distress caused by these actions.
5. **Future Travel**: Clarify the basis for the threat that we will be detained every time we travel and ensure this threat is retracted if no lawful grounds exist.
6. **Protection of Legal Professional Privilege (LPP)**: Ensure that any LPP material that has been extracted is not used. We maintain our LPP privilege and rights. You are on notice.

Australian Border Force's role is to protect and secure the borders of Australia, not

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to be used as a tool for thuggery to bypass established legal protections and due process in Australia. This is now the 3rd time you have done this to us.

I trust that your office will handle this matter seriously, and I look forward to your response on how this issue will be addressed. I demand a response and explanation within **7 business days.**

For any clarifications or updates regarding the progress of this matter, I can be contacted directly on this email and/or on mobile 0478880685 Given the urgency of this issue, I expect priority handling.

Sincerely,

Vida Reid

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under the *Freedom of Information Act 1982*

From: s. 22(1)(a)(ii)
To: s. 22(1)(a)(ii)
Subject: Complaint: REID, Vida (F) 11JAN1987 [SEC=OFFICIAL:Sensitive]
Date: Wednesday, 9 October 2024 3:48:05 PM

OFFICIAL: Sensitive

Hi s. 22(1)(a)(ii)

The complainant stated they are aware as to why they were subject to Law Enforcement interest.
The complainant stated that they had court proceedings against them from the NDIS dropped.
The complainant was then told ABF are completing a baggage examination on behalf of another agency.

ABF advised that they would need to speak with AFP or their Lawyer if charges against them have been dropped and that the examination would still need to take place.

The complainant was not advised at any time they were detained or being detained or the subject of an alert.
The complainant asked if they would be subject to examination in the future as this isn't the first time they've been examined for this.

The complainant was not told at any time that ABF were following instructions from the National Disability Insurance Scheme (NDIS)……
Complainant was the only one to mention NDIS and stating someone had set her up.

The complainant asked ABF will I be examined all the time.
The complainant was told by ABF that they may be subject to examination for future travel.

In regards to LPP the complaint advised ABF that her laptop/iPad contained LPP material. (This was put aside by ABF but not examined).

Only devices examined were 2 x Mobile devices. 1 examined and 1 held pending examination.

Pax also advised that documentation in her possession contained LPP. s. 37(2)(b)
s. 37(2)(b)

s. 37(2)(b)

Kind Regards

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s. 22(1)(a)(ii)
Leading Border Force Officer
Aviation Travellers Team | Aviation Operations
Operations West
North, West & Detention Group
Australian Border Force
s. 22(1)(a)(ii)

OFFICIAL: Sensitive

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From: Daniel Rice
To: s. 22(1)(a)(ii)
Cc: John Hammond
Subject: Matter 1944: Ms Vida Reid - Malicious Prosecution and Associated matter
Date: Thursday, 10 October 2024 5:23:05 PM
Attachments: 20241010 Letter to Australian Border Force (1).pdf
image.png

To the Proper Officer,

Please see correspondence attached for your consideration.



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under the *Freedom of Information Act 1982*

From: s. 22(1)(a)(ii)
To: s. 22(1)(a)(ii)
Cc: s. 22(1)(a)(ii)
Subject: RE: RE: Complaint: REID, Vida (F) 11JAN1987 (IMMI-24-32444) s. 22(1)(a)(ii) s account [SEC=OFFICIAL:Sensitive]
Date: Thursday, 10 October 2024 8:15:17 PM

OFFICIAL: Sensitive

Hi s. 22(1)(a)(ii)

I will speak with the officers involved s. 22(1)(a)(ii) and have them complete a detailed and comprehensive response to the complaint in a clean, clear format.

Regards
s. 22(1)(a)(ii)
Duty Manager | Aviation Operations
Operations West
Maritime & Detention Operations Group
Australian Border Force
s. 22(1)(a)(ii)

OFFICIAL: Sensitive

From: Aviation WA Complaints <AviationWAComplaints@abf.gov.au>
Sent: Thursday, 10 October 2024 4:04 PM
To: s. 22(1)(a)(ii)
Cc: s. 22(1)(a)(ii)
s. 22(1)(a)(ii)
Subject: FW: RE: Complaint: REID, Vida (F) 11JAN1987 (IMMI-24-32444) s. 22(1)(a)(ii) account [SEC=OFFICIAL:Sensitive]

OFFICIAL: Sensitive

Hi s. 22(1)(a)(ii)

Currently, I am unable to respond to the complaint as I do not have full clear details of ABF interactions with the complainant. Could Officer s. 22(1)(a)(ii) please provide a detailed and comprehensive response that clearly addresses as much of her complaint as his involvement in the baggage exam permits in a clean, clear format – not as an addendum to the email trail below.

s. 47E(d)

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s. 47E(d)

s. 47E(d)

s. 37(2)(b)

I would be grateful if you could review the report from s. 47E(d) and ensure it is complete and detailed prior to sending it on – many thanks.

Kind regards,

s. 47E(d)
Supervisor Aviation Management WA
Aviation |Operations West
Regional Operations West
Australian Border Force
s. 47E(d)

OFFICIAL: Sensitive

From: s. 47E(d)
Sent: Wednesday, 9 October 2024 2:22 PM
To: s. 47E(d)
Subject: CM: RE: Complaint: REID, Vida (F) 11JAN1987 (IMMI-24-32444)
[SEC=OFFICIAL:Sensitive]

OFFICIAL: Sensitive

Hi s. 47E(d)

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Please find additional comments from s. 47E(d) below.

Regards
s. 47E(d)
Duty Manager | Aviation Operations
Operations West
Maritime & Detention Operations Group
Australian Border Force
s. 47E(d)

OFFICIAL: Sensitive

From: s. 47E(d)
Sent: Wednesday, 9 October 2024 1:21 PM
To: s. 47E(d)
Cc: s. 47E(d)
s. 47E(d)
s. 47E(d)
Subject: FW: Complaint: REID, Vida (F) 11JAN1987 (IMMI-24-32444) [SEC=OFFICIAL:Sensitive]

OFFICIAL: Sensitive

Hi s. 47E(d)

Given the nature of the complaint and on reviewing s. 47E(d) response below, there are further questions as provided in red. Could you please follow up – many thanks.

Kind regards,

s. 47E(d)
Supervisor Aviation Management WA
Aviation |Operations West
Regional Operations West
Australian Border Force
s. 47E(d)

OFFICIAL: Sensitive

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From: s. 47E(d)
Sent: Wednesday, 9 October 2024 12:48 PM
To: s. 47E(d)
Subject: Complaint: REID, Vida (F) 11JAN1987 [SEC=OFFICIAL:Sensitive]

OFFICIAL: Sensitive

Hi s. 47E(d)

The complainant stated they are aware as to why they were subject to Law Enforcement interest.
The complainant stated that they had court proceedings against them from the NDIS dropped.
The complainant was then told ABF are completing a baggage examination on behalf of another agency. – To Clarify: Did ABF tell the complainant that the Baggage Exam was on behalf of another agency?

From my recollection Pax stated I know why I'm here and all charges have been dropped in regards to the NDIS.
Pax was then told by ABF we still need to complete the examination. Pax stated why as this has been dropped.
ABF told the Pax as we are not aware charges have been dropped and were conducting the examination on behalf of another agency.

ABF advised that they would need to speak with AFP or their Lawyer if charges against them have been dropped and that the examination would still need to take place.

s. 47E(d)

This was said because the Pax stated charges have been dropped. Pax also stated how can they stop this from happening for future travel. That's why the complainant was advised.

The complainant was not advised at any time they were detained or being detained or the subject of an alert.
The complainant asked if they would be subject to examination in the future as this isn't the first time they've been examined for this. – What was our response to this?

Response was they may or may not be subject to future examinations.

The complainant was not told at any time that ABF were following instructions from the National Disability Insurance Scheme (NDIS)……
Complainant was the only one to mention NDIS and stating someone had set her up.

The complainant asked ABF will I be examined all the time.
The complainant was told by ABF that they may be subject to examination for future travel.

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In regards to LPP the complaint advised ABF that her laptop/iPad contained LPP material. (This was put aside by ABF but not examined). To confirm, the claimant did not at any point advise the ABF that the mobile phones contained LPP material, only the Laptop and iPad?

I overheard Pax state laptop/ipad contains LPP. I can't comment in regards to the mobile devices as In did not conduct the examination and had very little conversation with the Pax.

Only devices examined were 2 x Mobile devices. 1 examined and 1 held pending examination.

Pax also advised that documentation in her possession contained LPP. s. 37(2)(b)

s. 37(2)(b)

s. 37(2)(b)

Kind Regards

s. 47E(d)
Leading Border Force Officer
Aviation Travellers Team | Aviation Operations
Operations West
North, West & Detention Group
Australian Border Force
s. 47E(d)

OFFICIAL: Sensitive

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s. 47E(d)

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under the *Freedom of Information Act 1982*

s. 47E(d)

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under the *Freedom of Information Act 1982*

s. 47E(d)

Released by Department of Home Affairs
under the *Freedom of Information Act 1982*

s. 47E(d)

Released by Department of Home Affairs
under the *Freedom of Information Act 1982*

From: s. 22(1)(a)(ii)
To: s. 22(1)(a)(ii)
Cc: s. 22(1)(a)(ii)
Subject: Complaint: REID, Vida (F) 11JAN1987 (IMMI-24-32444) - DDE Officer"s account [SEC=OFFICIAL:Sensitive]
Date: Thursday, 10 October 2024 5:56:09 PM

OFFICIAL: Sensitive

Hi s. 22(1)(a)(i

Since my initial enquiries relating to this complaint I have undertaken a review of the CCTV footage of the interactions and drafted a simple timeline of events as I perceived them:

@1826 travellers presented at OCP
@1838 travellers taken to the Outwards Bench/x-ray by s. 22(1)(a)(ii)
@ 1840 two phones were located and put aside
@1841 the two phones were taken by s. 22(1)(a
@1841 1st laptop/Tablet located in bag with paperwork, put aside
@1842 looking at paperwork, returned to bag.
@1843 Cash located/declared
@1844 Query re PIN for phone
@1857 iPad located in bag, returned to bag
@1857 2nd laptop/Tablet located and put aside
@1902 Both laptops/tablets looked at. Appears passwords requested and provided
@1903 Both laptops/tablets with passwords given to s. 22(1)(a
@1904 s. 22(1)(a departs area with laptops/tablets
@1910 Checked baggage arrived at examination area
s. 47E(d)
@1923 B390 form completed
@1938 finished in the exam area, travellers taken to wait in the Outwards referral area.
@1938 Several documents/paperwork were handed to travellers
@1948 laptops/tablets returned to travellers
@1950 Water provided to travellers
@2025 Mobile phone returned to travellers and they departed.

From the footage, it appears that three officers, s. 22(1)(a)(ii) were involved with the ABF's interactions with this family on the day.

As I have not received anything from s. 22(1)(a)(as the DDE officer, could you please have him put together a detailed statement that clearly identifies all actions he carried out in relation to the four devices that were taken away from the baggage assessment area. I would be grateful if you could check his response to ensure it is as detailed and comprehensive as practicable.

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s. 47E(d)

Please ensure the response is not limited to answering the questions above, they are just a few key points that need to be covered.

Kind regards,

s. 22(1)(a)(ii)
Supervisor Aviation Management WA
Aviation |Operations West
Regional Operations West
Australian Border Force
s. 22(1)(a)(ii)

OFFICIAL: Sensitive

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under the *Freedom of Information Act 1982*

From: s. 22(1)(a)(ii)
To: vida_reid@yahoo.com
Subject: Update regarding on your feedback with the Australian Border Force (IMMI-24-32444) [SEC=OFFICIAL:Sensitive]
Date: Friday, 11 October 2024 5:53:55 PM
Attachments: 20241010 Letter to Australian Border Force (1).pdf
Response (IMMI-24-32444) Vida REID re appointment of Legal Representative.pdf
image001.jpg

OFFICIAL: Sensitive

Australian Border Force Banner

Good afternoon Mrs Reid,

Thank you for taking the time to provide us with feedback. We value and appreciate compliments, suggestions or complaints in order to improve our services and the way we interact with the Australian community.

Attached is an update to your feedback.

If you are not satisfied with the outcome you receive you can contact the Commonwealth Ombudsman on 1300 362 072. The Commonwealth Ombudsman's aim is to resolve complaints impartially, informally and as quickly as reasonably practicable. If they cannot assist with a particular complaint, they will explain why, and suggest other avenues for resolving the matter. The Commonwealth Ombudsman cannot override the decisions of the agencies we deal with, nor issue directions to their staff. Instead, they will endeavour to resolve disputes through consultation and negotiation, and if necessary, by making formal recommendations to the most senior levels of government.

Your personal information contained within your feedback will be stored in accordance with the Information Privacy Principles and is protected under the Commonwealth Privacy Act 1988.

Regards

Australian Border Force

OFFICIAL: Sensitive

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HL | HAMMOND LEGAL

10 October 2024

17 Rheola Street, West Perth WA 6005
T +61 8 6311 7080 | F +61 8 6311 7081
www.hammondlegal.com.au
ABN 15 623 425 696

Our ref: 1944

John Hammond | Director
john@hammondlegal.com.au

Daniel Rice | Senior Associate
daniel@hammondlegal.com.au

PRIVATE & CONFIDENTIAL

Australian Border Force

By email: s. 22(1)(a)(ii)

To the Proper Officer,

Mr & Mrs Simon and Vida Reid
Search and Seizure – Perth International Airpoirt – 25 September 2024

We refer to the above matter.

1. We act for Mr & Mrs Simon and Vida Reid.
2. Our clients have instructed us that on 25 September 2024 at Perth International Airport our clients were set to board flight No. QZ537 destined for Bali Indonesia when they were apprehended by Australian Border Force **(ABF)** staff.
3. We are instructed that the ABF staff detained our clients for a period of about three hours during which time the ABF staff:
   a. searched our clients' belongings including their children's belongings, one of whom has disabilities;
   b. seized their electronic devices;
   c. advised our clients they had made copies of the contents of the electronic devices. We are instructed those devices contained sensitive information that may be subject to Legal Professional Privilege; and
   d. retained Mr Reid's iPhone 11. We refer to the Receipt of Goods No. 195253 provided to Mr Reid.
4. We are instructed that ABF staff advised our clients that the ABF had been alerted by persons on behalf of the National Disability Insurance Agency **(NDIA)** that our clients are in effect persons of interest.
5. The information conveyed by persons on behalf of the NDIA therefore appears to form the basis for the ABF's targeting of our clients.
6. Mrs Reid was the subject of a criminal prosecution initiated by the NDIA. Those proceedings were dismissed for want of prosecution on 23 February 2024 in the Perth Magistrates Court.

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7. In circumstances that there is no pending investigation or charges against our clients, and our clients have not been convicted for any offences concerning a federal authority, it would appear that the ABF did not have a legitimate purpose to target our clients in the manner in which they did.

8. We therefore request particulars as to:

   a. the basis for which our clients were detained, searched and had their property seized; and

   b. with reference to s 186A of the *Customs Act* 1901, the basis for which the contents of our clients' electronic devices were copied.

9. Lastly, we request that Mr Reid's iPhone 11 be returned to him immediately and confirmation that any data extracted and copied from our client's electronic devices be permanently deleted and not used for any purpose.

10. We request that this correspondence be forwarded to persons in your organisation with authority to deal with the matters contained herein.

11. We look forward to your reply as a matter of urgency.

If you have any queries, please make contact.

Yours sincerely

Hammond Legal

HAMMOND LEGAL

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under the *Freedom of Information Act 1982*

Australian BORDER FORCE

11 October 2024

Mrs Vida Reid
Email: vida_reid@yahoo.com

Dear Mrs Reid

On 10 October 2024 the Australian Border Force (ABF) received correspondence from Hammond Legal advising that they are acting on your and your husband's behalf in the matter that is the subject of your complaint lodged via our Global Feedback Unit on 07 October 2024, our reference IMMI-24-32444.

As you have now appointed a representative to act on your behalf in this matter, the ABF will be responding to Hammond Legal regarding the matter as outlined in their correspondence.

Yours sincerely

s. 22(1)(a)(ii) 30677
Supervisor
WA Aviation Management
Australian Border Force

Enc. Letter from Hammond Legal: 20241010 Letter to the Australian Border Force (1)

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From: s. 22(1)(a)(ii)
To: daniel@hammondlegal.com.au
Subject: Matter 1944: Ms Vida Reid - Malicious Prosecution and Associated matter [SEC=UNOFFICIAL]
Date: Monday, 14 October 2024 1:57:37 PM
Attachments: image001.png
Hammond Legal Response.docx

UNOFFICIAL

Good morning Hammond Legal

Attached is a formal response to your enquiry.

If you are not satisfied with the outcome you receive you can contact the Commonwealth Ombudsman on 1300 362 072. The Commonwealth Ombudsman's aim is to resolve complaints impartially, informally and as quickly as reasonably practicable. If they cannot assist with a particular complaint, they will explain why, and suggest other avenues for resolving the matter. The Commonwealth Ombudsman cannot override the decisions of the agencies we deal with, nor issue directions to their staff. Instead, they will endeavour to resolve disputes through consultation and negotiation, and if necessary, by making formal recommendations to the most senior levels of government.

Regards

Australian Border Force

UNOFFICIAL

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under the *Freedom of Information Act 1982*

[redacted]

14 October 2024

Hammond Legal
By Email: daniel@hammondlegal.com.au

You ref: 1944

Dear Hammond Legal

Thank you for your correspondence dated 10 October 2024 where you advise that you act for Mr and Mrs Simon and Vida Reid.

We have, below, responded to your request for further particulars in regards to the matters you raised in paragraph eight of your correspondence.

The basis for detention, searches and property seizure

With respect to your clients' interactions with the Australian Border Force (ABF) on 25 September 2024 at the Perth International Airport, I can advise that at no point were they subject to detention, or was any of their property seized.

Goods belonging to your clients were examined by the ABF in accordance with the sections of the Customs Act referenced below. Your clients were present during their examination but they were not compelled to remain with their goods at the screening point by the ABF.

Under section 186 of the *Customs Act 1901 (Customs Act)*, ABF officers are entitled to examine goods (including electronic devices) subject to customs control.

Section 30 of the Customs Act provides for when goods are subject to customs control.

Section 30(d) of the Customs Act provides, as far as relevant, that good subject to customs control includes goods 'from the time the goods are brought into, any prescribed place for export, until their exportation to a place outside Australia'.

Perth International Airport is a prescribed place for export for the purposes of section 30(d).

As such, ABF officers were empowered to examine the goods, belonging to your clients' – that were brought to Perth International airport on 25 September 2024 and which were destined for an overseas location (in this case Indonesia).

ABF Officers may as a part of their examining of goods:

- Open any package in which goods are or may be contained
- Use a device such as an x-ray machine, ion scanning equipment or available technologies on the goods
- Test or analyse the goods

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- Measure or count the goods
- If the goods are a document, read the document either directly or with the use of an electronic device
- Use detector dogs to assist in examining the goods

Copies of electronic devices

I confirm that ABF has not, under section 186A of the Customs Act, made any copies of your clients' electronic devices.

Return of device and LPP claim

I confirm that Mr Simon Reid's mobile device – IPhone – IMEI – 35166476996627 is currently being held by the ABF pending examination under section 186 of the Customs Act.

If your client is claiming legal professional privilege (LPP) in respect to this device we invite your clients to provide particulars of their claim for LPP in the next 14 days.

We confirm that the ABF will not copy or review any of the content of the device until receipt of their particularised claims on or before **4pm on 28 October 2024** being fourteen (14) days from 14 October 2024. However if ABF does not receive a response to this invitation to particularise the claim of LPP on or before 4pm on the 28 October 2024, the ABF will review the data on your clients phone.

The ABF will assess any claims for LPP in good faith and promptly identify any material in respect of which a claim is accepted or not contested and notify your clients. The ABF will otherwise review data on your client's phone that is not particularised as being subject to LPP.

The ABF will not review or rely on such material identified as subject of a claim of LPP by your clients, and as practicable, will maintain it as quarantined data. The ABF may request additional information from your clients in respect of any material identified as LPP that it is reasonably necessary for the ABF to determine whether a claim of LPP is justified. The ABF will work with your clients in good faith to resolve any disputed claims of LPP.

When particularising the claim can you please have your clients provide the document identification details required to ensure that the material can be quarantined and excluded from any examination if the event the LPP claim is accepted. We also ask that your clients provides the following details for each document they assert is covered by LPP:

- Specific grounds on which LPP is claimed;
- Facts relied upon giving rise to a claim of LPP; and
- Whether LPP is claimed over whole or part of the document.

If following reasonable attempts to resolve any disputed claims of LPP the claims remain unresolved, the ABF will notify your clients in writing that it does not accept a claim of LPP in respect of any material identified by your clients and provide your client with seven (7) days to commence proceedings to establish the privilege claimed. Should

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proceedings not be commenced within seven (7) days, on the 8th day the ABF will review all of the potential LPP material on the basis that no LPP claim has been made by your clients with respect of that material.

Yours sincerely

s. 22(1)(a)(ii) 56550
A/g Inspector
WA Aviation Management
Australian Border Force

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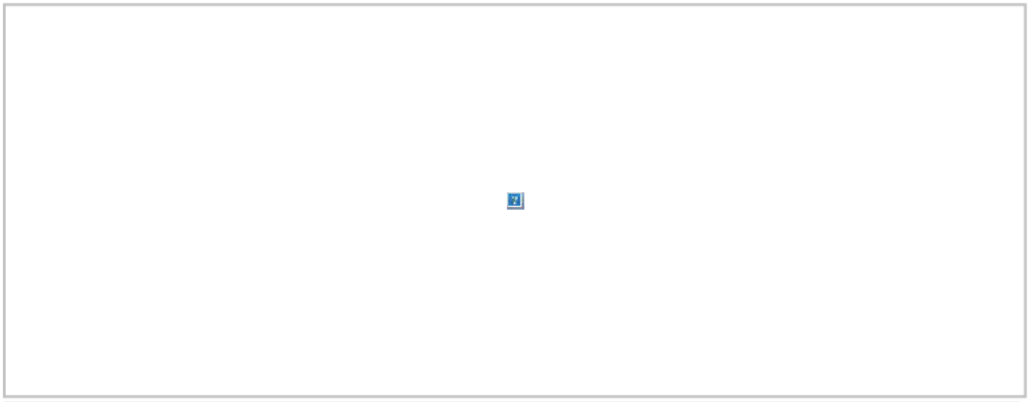
s. 47E(d)

From: Daniel Rice <daniel@hammondlegal.com.au>
Sent: Wednesday, 23 October 2024 4:04 PM
To: s. 22(1)(a)(ii)
Subject: RE: Matter 1944: Ms Vida Reid - Malicious Prosecution and Associated matter [SEC=UNOFFICIAL]

Dear Colleagues,

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Please see correspondence attached for your consideration.



From: s. 22(1)(a)(ii)
To: Daniel Rice <daniel@hammondlegal.com.au>
Cc:
Subject: Matter 1944: Ms Vida Reid - Malicious Prosecution and Associated matter [SEC=UNOFFICIAL]
Received: Monday October 14, 2024 11:03 am

UNOFFICIAL

Image removed by sender.



Good morning Hammond Legal

Attached is a formal response to your enquiry.

If you are not satisfied with the outcome you receive you can contact the Commonwealth Ombudsman on 1300 362 072. The Commonwealth Ombudsman's aim is to resolve complaints impartially, informally and as quickly as reasonably practicable. If they cannot assist with a particular complaint, they will explain why, and suggest other avenues for resolving the matter. The Commonwealth Ombudsman cannot override the decisions of the agencies we deal with, nor issue directions to their staff. Instead, they will endeavour to resolve disputes through consultation and negotiation, and if necessary, by making formal recommendations to the most senior levels of government.

Regards

Australian Border Force

UNOFFICIAL

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under the *Freedom of Information Act 1982*

From: Daniel Rice
To: s. 22(1)(a)(ii)
Subject: RE: Matter 1944: Ms Vida Reid - Malicious Prosecution and Associated matter [SEC=UNOFFICIAL]
Date: Wednesday, 23 October 2024 7:05:25 PM
Attachments: 20241023 Letter to Australian Border Force (1).pdf
image.png

Dear Colleagues,

Please see correspondence attached for your consideration.

From: s. 22(1)(a)(ii)
To: Daniel Rice <daniel@hammondlegal.com.au>
Cc:
Subject: Matter 1944: Ms Vida Reid - Malicious Prosecution and Associated matter [SEC=UNOFFICIAL]
Received: Monday October 14, 2024 11:03 am

UNOFFICIAL

Good morning Hammond Legal

Attached is a formal response to your enquiry.

If you are not satisfied with the outcome you receive you can contact the Commonwealth Ombudsman on 1300 362 072. The Commonwealth Ombudsman's aim is to resolve complaints impartially, informally and as quickly as reasonably practicable. If they cannot assist with a particular complaint, they will explain why, and suggest other avenues for resolving the matter. The Commonwealth Ombudsman cannot override the decisions of the agencies we deal with, nor issue directions to their staff. Instead, they will endeavour to resolve disputes through consultation and negotiation, and if necessary, by making formal recommendations to the most senior levels of government.

Regards

Australian Border Force

UNOFFICIAL

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HAMMOND LEGAL

23 October 2024

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www.hammondlegal.com.au
ABN 15 623 425 696

Our ref: 1944

John Hammond | Director
john@hammondlegal.com.au

Daniel Rice | Senior Associate
daniel@hammondlegal.com.au

PRIVATE & CONFIDENTIAL
s. 22(1)(a)(ii) 56550
A/g Inspector
WA Aviation Management
Australian Border Force

By email: s. 22(1)(a)(ii)

Dear s. 22(1)(a)(ii)

Mr & Mrs Simon and Vida Reid
Search and Seizure – Perth International Airpoirt – 25 September 2024

We refer to your letter of 14 October 2024.

1. We have serious concerns for not only the conduct of the customs officer's as alleged by our clients as stated in our letter of 10 October 2024 but also in your response dated 14 October 2024.

2. The officers' conduct as alleged and your response to our correspondence appears to demonstrate a serious misunderstanding of the powers available to customs officers under the *Customs Act* 1901 **(the Act)**.

3. Our view is that the customs officer's conduct in apprehending our clients without a proper basis and seizing Mr Reid's mobile telephone was not done in accordance with the Act and amounts to gross invasion of our client's privacy.

4. Our clients further maintain their position that copies were made of their electronic devices pursuant to s186A(2) and that their devices were seized for a considerable time to effect this process. We are instructed that statements made by the customs officers are inconsistent with your denial that no copies were made of their electronic devices.

5. In reference to the above, we refer to the decision of *DPP (Cth) v Farmer (a Pseudonym) and Ors* [2017] VSCA 292, in which Priest JA stated at [207]:

> *"Recognising that the Customs Act 1901 is concerned with both the exaction of revenue and the control of prohibited or restricted matter, it is consistent with the purposes and objects of the Act, and with the ordinary and natural meaning of the term, to conclude that export means taking goods out of Australia with the intention of landing them at some place beyond Australian territory. To that extent, export has connotations of a one-way journey of goods from Australia to an ultimate*

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destination in another place outside Australia. Ordinarily, conveying the personal effects of a passenger — reading glasses, watch, wedding ring, wallet, camera and the like — from the country with no intention that they be landed in another, could not properly be described as an export of those personal effects. In the present case it could not accurately be said that there was any evidence that could justify the conclusion that the telephone accompanying Farmer on 14 April 2013 was to be landed in another country, let alone that it might attract duty, or that it was, or contained, prohibited goods. In my opinion, therefore, the telephone was not 'goods for export', and hence was not 'subject to the control of customs'. Accordingly, the officers' powers under ss186 and 186A were not engaged."

6. We note that you have not adequately addressed paragraph 8 of our letter dated 10 October 2024.

7. With reference to *Farmer*, please advise how the customs officers' apprehension, searching, and possible copying of our clients' devices falls within the scope of the Act. What breach of the Act or associated legislation were our clients reasonably suspected to have committed?

8. We refer to the Schedule herein that shows the sources of communications and documents received by our clients from their legal advisors in respect to litigious matters that are or may be contained on Mr Reid's phone, as well as in any other material held by the Australian Border Force **(ABF)**.

9. We otherwise request:

   a. the immediate return of Mr Reid's mobile phone;

   b. confirmation of the destruction of any materials that may have been copied in accordance with section 186A(2) of the Act;

   c. a formal apology to our clients and an assurance that our client's will not receive further improper treatment when leaving or entering Australia.

10. In the event the ABF is not agreeable to the matters described in the preceding paragraph, we request the provision of all file notes, memorandums and reports made in relation to the events that concerned our clients on 25 September 2024.

11. Our clients otherwise reserve the right to take further action.

12. We look forward to your reply.

If you have any queries, please make contact.

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Yours sincerely

Hammond Legal

HAMMOND LEGAL

SCHEDULE OF SOURCES OF LPP MATERIAL

1. NDIS@legalaid.wa.gov.au - Nicole Smedley
2. Melissa Evans- NDIS Appeals Solicitor (Part time – Mondays and Thursdays)- Civil Law Division
3. Melissa.Evans@legalaid.wa.gov.au
4. Megan.McCormack@legalaid.wa.gov.au
5. s.howarth@sscls.asn.au - Legal assistance with NDIS for my son
6. any and all legal aid emails
7. Ryan from Avery Ashoorian law firm ryan@averyashoorian.com
8. Nathan Ebbs - nebbs@bennettlaw.com.au
9. Martin Bennett - mbennett@bennettlaw.com.au
10. Christine Arthur - carthur@bennettlaw.com.au
11. Gina Nofal - gnofal@bennettlaw.com.au
12. Audrey Webb - awebb@bennettlaw.com.au
13. Lucy Blakiston - lblakiston@bennettlaw.com.au
14. Martin Bennett - MBennett@bennettandco.com.au
15. Fabienne Sharbanee - fsharbanee@bennettandco.com.au
16. Lucy Blakiston - LBlakiston@bennettandco.com.au
17. Tracey Cole - tcole@bennettandco.com.au
18. admin@tomandcolegal.com.au
19. jason@argoslegal.com.au
20. Remy (identified by the email address remy@dfglegal.com.au)
21. Damian Gordon (identified by the email address damian@dfglegal.com.au)
22. Rachel Robson rachel@dfglegal.com.au

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From: s. 22(1)(a)(ii)
To: s. 22(1)(a)(ii)
Cc: s. 22(1)(a)(ii)
Subject: RE: RE: Complaint: REID, Vida (F) 11JAN1987 (IMMI-24-32444) -s. 22(1)(a)(ii) account [SEC=OFFICIAL:Sensitive]
Date: Wednesday, 16 October 2024 6:46:56 PM
Attachments: Statement of events - Officer s. 22(1)(a)(ii) .pdf
PAX REID, Vida complainant.docx
Statement of events - Officer s. 22(1)(a) .docx

OFFICIAL: Sensitive

Hi s. 22(1)(a)(ii)

Please find attached details of Officer s. 22(1)(a)(ii) Officer s. 22(1)(a)(ii) and Officer s. 22(1)(a)(ii) interactions with the complainant as requested, thanks.

Regards
s. 22(1)(a)(ii)
Duty Manager | Aviation Operations
Operations West
Maritime & Detention Operations Group
Australian Border Force
s. 22(1)(a)(ii)

OFFICIAL: Sensitive

From: s. 22(1)(a)(ii)
Sent: Thursday, 10 October 2024 4:04 PM
To: s. 22(1)(a)(ii)
Cc: s. 22(1)(a)(ii)
s. 22(1)(a)(ii)
Subject: FW: RE: Complaint: REID, Vida (F) 11JAN1987 (IMMI-24-32444) -s. 22(1)(a)(ii) account [SEC=OFFICIAL:Sensitive]

OFFICIAL: Sensitive

Hi s. 22(1)(a)(ii)

Currently, I am unable to respond to the complaint as I do not have full clear details of ABF interactions with the complainant. Could Officer s. 22(1)(a)(ii) please provide a detailed and comprehensive response that clearly addresses as much of her complaint as his involvement in the baggage exam permits in a clean, clear format – not as an addendum to the email trail below.

s. 37(2)(b)

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s. 37(2)(b)

I would be grateful if you could review the report from s. 22(1)(a)(ii) and ensure it is complete and detailed prior to sending it on – many thanks.

Kind regards,

s. 22(1)(a)(ii)
Supervisor Aviation Management WA
Aviation |Operations West
Regional Operations West
Australian Border Force
s. 22(1)(a)(ii)

OFFICIAL: Sensitive

From: s. 22(1)(a)(ii)
Sent: Wednesday, 9 October 2024 2:22 PM
To: s. 22(1)(a)(ii)
Subject: CM: RE: Complaint: REID, Vida (F) 11JAN1987 (IMMI-24-32444) [SEC=OFFICIAL:Sensitive]

OFFICIAL: Sensitive

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Hi s. 22(1)(a)(ii)

Please find additional comments from s. 22(1)(a)(ii) below.

Regards
s. 22(1)(a)(ii)
Duty Manager | Aviation Operations
Operations West
Maritime & Detention Operations Group
Australian Border Force
s. 22(1)(a)(ii)

OFFICIAL: Sensitive

From: s. 22(1)(a)(ii)
Sent: Wednesday, 9 October 2024 1:21 PM
To: s. 22(1)(a)(ii)
Cc: s. 22(1)(a)(ii)
s. 22(1)(a)(ii)
s. 22(1)(a)(ii)
Subject: FW: Complaint: REID, Vida (F) 11JAN1987 (IMMI-24-32444) [SEC=OFFICIAL:Sensitive]

OFFICIAL: Sensitive

Hi s. 22(1)(a)(ii)

Given the nature of the complaint and on reviewing s. 22(1)(a)(ii) response below, there are further questions as provided in red. Could you please follow up – many thanks.

Kind regards,

s. 22(1)(a)(ii)
Supervisor Aviation Management WA
Aviation |Operations West
Regional Operations West
Australian Border Force
s. 22(1)(a)(ii)

OFFICIAL: Sensitive

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under the *Freedom of Information Act 1982*

From: s. 22(1)(a)(ii)
Sent: Wednesday, 9 October 2024 12:48 PM
To: s. 22(1)(a)(ii)
Subject: Complaint: REID, Vida (F) 11JAN1987 [SEC=OFFICIAL:Sensitive]

OFFICIAL: Sensitive

Hi s. 22(1)(a)(ii)

The complainant stated they are aware as to why they were subject to Law Enforcement interest.
The complainant stated that they had court proceedings against them from the NDIS dropped.
The complainant was then told ABF are completing a baggage examination on behalf of another agency. – To Clarify: Did ABF tell the complainant that the Baggage Exam was on behalf of another agency?

From my recollection Pax stated I know why I'm here and all charges have been dropped in regards to the NDIS.
Pax was then told by ABF we still need to complete the examination. Pax stated why as this has been dropped.
ABF told the Pax as we are not aware charges have been dropped and were conducting the examination on behalf of another agency.

ABF advised that they would need to speak with AFP or their Lawyer if charges against them have been dropped and that the examination would still need to take place.

s. 47E(d)

This was said because the Pax stated charges have been dropped. Pax also stated how can they stop this from happening for future travel. That's why the complainant was advised.

The complainant was not advised at any time they were detained or being detained or the subject of an alert.
The complainant asked if they would be subject to examination in the future as this isn't the first time they've been examined for this. – What was our response to this?

Response was they may or may not be subject to future examinations.

The complainant was not told at any time that ABF were following instructions from the National Disability Insurance Scheme (NDIS)……
Complainant was the only one to mention NDIS and stating someone had set her up.

The complainant asked ABF will I be examined all the time.

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The complainant was told by ABF that they may be subject to examination for future travel.

In regards to LPP the complaint advised ABF that her laptop/iPad contained LPP material. (This was put aside by ABF but not examined). To confirm, the claimant did not at any point advise the ABF that the mobile phones contained LPP material, only the Laptop and iPad?

I overheard Pax state laptop/ipad contains LPP. I can't comment in regards to the mobile devices as In did not conduct the examination and had very little conversation with the Pax.

Only devices examined were 2 x Mobile devices. 1 examined and 1 held pending examination.

s. 37(2)(b)

Kind Regards

s. 22(1)(a)(ii)
Leading Border Force Officer
Aviation Travellers Team | Aviation Operations
Operations West
North, West & Detention Group
Australian Border Force
s. 22(1)(a)(ii)

Released by Department of Home Affairs under the *Freedom of Information Act 1982*

Australian BORDER FORCE

Date of event: 25/09/2024 s. 37(2)(b)

Complainant: REID, Vida (F) 11JAN1987

A/g Leading Border Force Officer: s. 22(1)(a)(ii)

Statement of events:

My versions of event in addressing the complaint are as follows:

On 25SEP2024 @approx. 18:38 ABF Officers s. 22(1)(a)(ii) and I attended outwards for 2 passengers s. 37(2)(b)

My role was Digital Device Examination (DDE) Officer.
Officer s. 22(1)(a)(ii) was the Baggage Officer.
Officer s. 22(1)(a)(ii) was the Leading Border Force Officer.

My interaction including examine mobile device and electronic storage equipment s. 37(2)(b)

At approximately 18:41, I received two mobile devices form REID, Simon (M) 17SEP1981 & REDI, Vida (F) 11JAN1987

At approximately 18:45, Vida mobile device, iPhone 13 IMEI 35 714 095 4646 7700 was connect to DDE computer and start the extraction.

At approximately 18:47, Simon mobile device, iPhone 11 IMEI 35 166 476 996 6217 was connect to DDE computer, however the security code was incorrect, it was unable to extract the device without any security code.

There were multiple attempted try to enter security code on Simon mobile device until the device was lock for multiple incorrected security code were enter.

After the mobile device was unlock, I asked Simon for security code as the previous code was incorrect, however after multiple attempted, including Simon put in the security code, mobile device was locked for 60 minus

s. 37(2)(b) I completed the B390 and held the mobile device pending for further examination.

At approximately 19:03, Two Microsoft Surface Pro, Simon Surface Pro appeared no power and require to be charge.

Both Microsoft Surface Pro was access with provide password and each devices was assessed no more than three minus.

Date of event: 25/09/2024 s. 37(2)(b)

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Date of event: **25/09/2024** s. 37(2)(b)

Vida's mobile device was disconnect from DDE computer due to fail the extraction; DDE software was frozen after attempt to extract the device.

Total time of extraction time was one hours forty minus and 53 seconds, due to fail the extraction, no date was retain and copy.

At approximately 19:48, Two Microsoft Surface Pro returned to travellers.

At approximately 20:25, Vida's mobile was return.

All devices was no copy, retain and extract.

ABF followed correct procedures at all times.

At no time did ABF harass, unlawfully detain or violate the Pax's privacy.

Kind Regards

s. 22(1)(a)(ii)
A/g Leading Border Force Officer
Aviation Travellers Team | Aviation Operations
Operations West
Australian Border Force
s. 22(1)(a)(ii)

Date of event: **25/09/2024** s. 37(2)(b)

Released by Department of Home Affairs under the *Freedom of Information Act 1982*

Australian BORDER FORCE

Date of event: 25/09/2024 s. 37(2)(b)

Complainant: REID, Vida (F) 11JAN1987

Leading Border Force Officer: s. 22(1)(a)(ii)

Statement of events:

My versions of event in addressing the complaint are as follows:

On 25SEP2024 @approx. 18:38 ABF Officers s. 22(1)(a)(ii) and I attended outwards for 2 passengers s. 37(2)(b)

My role was Leading Border Force Officer.
Officer s. 22(1)(a)(ii) was the Baggage Officer.
Officer s. 22(1)(a)(ii) was the DDE Officer.

My interaction including any conversation or copying of documents stated below:

During the baggage examination I asked the complainant and her husband Simon have they had any previous intervention or convictions with the law before.
The complainant stated yes they were set up by someone in regards to de-frauding the NDIS.
The complainant stated I know why I'm here and they are aware as to why they were subject to Law Enforcement interest.

Vida stated that she had court proceedings against her from the NDIS dropped and are not sure why ABF are still wanting to conduct a baggage examination.

Vida was then told ABF are still needing to complete a baggage examination.

Vida was not told at any time that ABF were following instructions from the National Disability Insurance Scheme (NDIS).
Vida was the only one to mention NDIS and stating someone had set her up.

Vida asked if they would be subject to examination in the future as this isn't the first time they've been examined for this.
ABF responded they may or may not be subject to future examinations.
ABF at no time ever stated to Vida or Simon that they will be detained every time they travel in the future as per the NDIS instructions and each time all of our data will continuously be collected.

ABF at no time ever stated to Vida or Simon that they were following instructions from the National Disability Insurance Scheme (NDIS) to bypass the legal requirement of obtaining a warrant.

Vida stated how they can stop this from happening for future travel.
Vida stated I will contact my Lawyer.

Date of event: 25/09/2024 s. 37(2)(b)

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Date of event: **25/09/2024** s. 37(2)(b)

ABF then replied you can contact your lawyer if you have any issues regarding the examinations as ABF are not aware of any charges being dropped.
Vida asked why ABF are conducting the examination. Vida was then told the examination is being conducted for another agency.

Vida and Simon were asked by Officer s. 22(1)(a)(ii) if they had any electronic devices in their possession they both state yes.
Vida and Simon willingly handed over there devices being 2 x mobile phones and 2 x laptop devices to Officer s. 22(1)(a (Vida willingly provided Pins for 1 x Mobile phone and 2 x laptops (Devices were never confiscated). They were taken for examination.

Simon failed to remember pin for 1 x Mobile phone after multiple attempts with trying pin number the phone could not unlocked.

Simon was given plenty of time to provide correct pin but failed to do so.
s. 37(2)(b) it was decided the phone be held on B390 pending further examination. Officer s. 22(1)(a completed the B390).

It was explained to Simon by Officer s. 22(1)(a that because the mobile phone could not be examined as correct pin not provided it will need to be held pending further examination and sent to ABF digital forensics. Simon stated do what you need to do – that's fine. (Simon willingly signed B390 for mobile phone).

1 x Mobile phones was examined and returned to Vida by Officer s. 22(1)(a)(ii) – 1 x Mobile held as Simon couldn't remember Pin. (Vida didn't mention at any time LPP was on any of the Mobile devices).

Vida also had 2 x Laptop devices in her possession. Laptops were taken to DDE room by Officer s. 22(1)(a but were not examined, DDE Officer only entered passwords and checked what was opened already on the devices.
(Vida stated there is LPP the Laptop devices.) Vida advised by ABF any LPP on the devices will not be examined. Vida didn't state at any time what LPP material or where it was located.
Vida only stated the LPP is in regards to her work. (Laptops returned by Officer s. 22(1)(a)(ii)).
Vida also advised that documentation/paperwork in her possession contained LPP. (Vida didn't state what paperwork was LPP).

Vida's complaint stated devices were confiscated - No Devices were confiscated they were examined (Mobile phones only). 1 x Mobile phone held for further examination as Pin not provided. Vida was told mobile phone will be retuned once process completed.

Vida's complaint stated and we were advised the contents were copied without our consent or a warrant at the instructions and request of the NDIS and NDIS taskforce. This was not true – This was never discussed.

Vida never requested a certificate or acknowledgment of the copying of any LPP documents. (No LPP was seen or copied).

s. 47E(d)

Date of event: **25/09/2024** s. 37(2)(b)

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Date of event: **25/09/2024** s. 37(2)(b)

There was some paper work located which was examined but not copied, this was in regards to a sale of property. s. 37(2)(b)

Vida or Simon were not advised at any time that they were detained or being detained or the subject of an alert. The word detained or alert was never mentioned nor discussed.

In dealing with Vida and Simon's Autistic child. ABF offered support and comfort throughout the entire examination. The child was playing with x-ray curtain and was told off by his parents multiple times. I stated I have powered down and made to the x-ray safe and that its ok for the child to continue was he was doing.

All Pax were offered and given water by Officer s. 22(1)(a)(ii).

The child was never distressed at any time during the search, he was never screaming, running around in panic or at any stage completely overwhelmed.

After the examination had completed and whilst waiting for Vida's mobile phone to finish being examined. ABF advised Simon that if he and the children would like to proceed to their flight they can.
Simon declined offer and stated he will wait with his wife till her phone is ready. Vida stated to Simon you go through and I will wait. He still refused.

ABF followed correct procedures at all times.

At no time did ABF harass, unlawfully detain or violate the Pax's privacy.

Kind Regards

s. 22(1)(a)(ii)
Leading Border Force Officer
Aviation Travellers Team | Aviation Operations
Operations West
North, West & Detention Group
Australian Border Force
s. 22(1)(a)(ii)

Date of event: **25/09/2024** s. 37(2)(b)

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Australian BORDER FORCE

Date of event: **25/09/2024** s. 37(2)(b)

Complainant:
REID, Vida (F) 11JAN1987

Baggage Officer:

s. 22(1)(a)(ii)

Statement of events:

My versions of event in addressing the complaint are as follows:

On 25SEP2024 @ approx. 18:38 ABF Officers s. 22(1)(a)(ii)
attended outwards for 2 passengers s. 37(2)(b)

Officer s. 22(1)(a)(ii) was the Baggage Officer.
Officer s. 22(1)(a)(ii) was the DDE Officer.
Officer s. 22(1)(a)(ii) Leading Border Force Officer.

My interaction including any conversation or copying of documents stated below:

At the start of the interaction with the PAX after she advised that her son was autistic I advised Vida REID that I had dealt with children in the past who are Autistic and tried to reassure her that I would do everything I could to make this process as smooth as possible. s. 22(1)(a)(ii)
s. 22(1)(a)(ii)

I asked the PAX if she would prefer that her son sit with their elder daughter in the seating area at the outwards referrals area, which she agreed was a good idea. The child was restless there, so after some time I offered him a chair at the examination bench area at outwards so he could be close to his parents.

Their son was also restless at this area and continually tried to play with the X-ray machine, upon seeing this my senior officer disabled the machine so the child could continue to run his hands over the rollers and play with the x-ray curtains. I also offered both of their children some water from the drinking fountain to which they politely accepted towards the end of the interaction.

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Date of event: **25/09/2024** s. 37(2)(b)

Nothing was retained from the phones these were only examined. Under s186 of the Customs act:

There was nil data retained from any mobile device as per the DDE form. Examination was also cut short and abandoned to allow the PAX and her family time to board the outbound flight to Bali.

PAX'S husband phone was held on a B390 from as he was unable to provide ABF with the PIN over multiple requests and failed attempts to unlock that device. ABF advised that the phone would then be held and sent for digital device examination.

s. 37(2)(b)

Nearing the completion of the interaction ABF officers offered for the Husband to take himself and the children through Airport security as we were at that stage only dealing with PAX Vida REID mobile device. ABF officers advised the husband Simon REID that he was able to leave and process through airport security with their children however he declined and chose to stay with his wife.

Vida and Simon REID were never detained or advised that they would be detained in the future, officers did not use that narrative. To clarify this ABF did not carry out 219 frisk which would cause a PAX to be detained. ABF stated that the REID may still be subject to baggage examinations when travelling through an International port. s. 37(2)(b)
s. 37(2)(b)
s. 37(2)(b)
s. 37(2)(b)

PAX initiated any and all conversation around NDIS. ABF officers then asked had she been in any **trouble recently with any law enforcement agencies previously to which the PAX replied 'yes'** NDIS. **'I had to sell my house to pay approx. AUD 850,000 for legal fees'**

The PAX mentioned that she thought this interaction was in regards to previous NDIS issues. PAX advised ABF that the charges had been dropped and asked why we were doing this examination. ABF then advised we have a process to follow and were doing so under the direction of another agency.

s. 37(2)(b)

The only devices examined were 2 x Mobile devices. 1 examined and 1 held pending examination due to the Husband Simon REID not providing his PIN.

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Date of event: **25/09/2024** s. 37(2)(b)

Regarding anything that was mentioned about LPP I did seek advice from my senior officers and it was discussed after the PAX mentioned to ABF that LPP documentation was on her Laptop. The laptop was put to the side and was not subject to any DDE. Nil documentation containing and LPP was located and or copied. s. 47E(d)
s. 47E(d)

Vida REID also advised that documentation in her possession contained LPP. s. 37(2)(b)
s. 37(2)(b)

s. 47E(d)
s. 47E(d) Once the baggage exam was finished and we had issued the B390 for the husband's phone we were still waiting on the DDE to complete on the wife's phone. As mentioned earlier we cut that extraction short on Vida REID phone to enable the family enough time to process through airport security and board their outgoing flight to Bali.

Any questions to ABF from REID about this interaction was explained by way of – every passenger that travels through and international airport is subject to some form of customs checks, and today this was how your checks are being undertaken.

I believe that myself and my senior officers acted professionally, courteously and were extremely sensitive to the fact that Vida and Simon REID had a child with disabilities travelling with her.

Kind Regards,

s. 22(1)(a)(ii)
Border Force Officer | Aviation Travellers
Operations West
Regional Operations
Australian Border Force
s. 22(1)(a)(ii)

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From: s. 22(1)(a)(ii)
To: s. 22(1)(a)(ii)
Cc: s. 22(1)(a)(ii)
Subject: FEEDBACK RESPONSE RECEIPT (IMMI-24-32444-1) s. 22(1)(a)(ii) [SEC=OFFICIAL]
Date: Wednesday, 16 October 2024 10:43:05 AM

Dear s. 22(1)(a)(ii)
Thank you for providing the GFU a copy of your response to feedback case number IMMI-24-32444-1 Mrs Vida REID on 7 October 2024.
I have classified your resolution to the feedback as: Client or application specific information provided. This feedback is now closed and considered resolved.
If you feel your response has been incorrectly classified please notify the GFU at s. 22(1)(a)(ii)

s. 47E(d)

If you have any questions or require additional information, please contact the GFU by email.
Regards
s. 22(1)(a)(ii)
Feedback Officer
Global Feedback Unit
Service Delivery Operations Branch | Service Design & Delivery Programs
Immigration Group
Department of Home Affairs
E: s. 22(1)(a)(ii)
E: fs. 22(1)(a)(ii) 16 October 2024

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s. 42(1)

Released by Department of Home Affairs
under the *Freedom of Information Act 1982*

s. 42(1)

Released by Department of Home Affairs
under the *Freedom of Information Act 1982*

s. 47E(d)

Released by Department of Home Affairs
under the *Freedom of Information Act 1982*

s. 47E(d)

Released by Department of Home Affairs
under the *Freedom of Information Act 1982*

s. 47E(d)

Released by Department of Home Affairs
under the *Freedom of Information Act 1982*

From: s. 22(1)(a)(ii)
To: s. 22(1)(a)(ii)
Cc: s. 22(1)(a)(ii)
Subject: RE: Complaint: REID, Vida (F) 11JAN1987 (IMMI-24-32444) - J. s. 22(1)(a)(ii) account [SEC=OFFICIAL:Sensitive]
Date: Thursday, 10 October 2024 7:04:23 PM

OFFICIAL: Sensitive

Hi s. 22(1)(a)(ii)

Could Officer s. 22(1)(a)(ii) please provide a detailed and comprehensive response that clearly addresses her complaint and my questions in a clean, clear format – not as an addendum to the email trail below.

s. 47E(d)

The information provided to date has been incomplete, please see my additional questions/comments in Red. I am unable to address the complaint without full clear details of our interactions with the complainant.

s. 47E(d)

I would be grateful if you could review the report from s. 22(1)(a)(ii) and ensure it is complete and detailed prior to sending it on. Many thanks.

Complaint: advised us that we will be detained every time we travel in the future as per the NIDS instructions and each time all of our data will continuously be collected….

- The passenger was never detained or advised that they would be detained in the future, officers did not use that narrative. Additionally ABF did not carry out a 219 frisk search which would cause a passenger to be detained. ABF stated that the passenger may still be subject to baggage examination when travelling through an International port. ABF officers offered for her husband to leave and process through airport security with their children, however he declined and chose to stay with his wife.

s. 37(2)(b)

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- s. 37(2)(b) s. 37(2)(b) . Once the baggage exam was finished and we had issued the B390 for the husbands phone we were still waiting on the DDE to complete on the wife's phone. As mentioned earlier we cut that extraction short (wife's phone) to enable the family enough time to process through airport security and to board their outgoing flight.

Complaint: The Border Force employees stated that they were following instructions from the National Disability Insurance Scheme (NDIS)……

- The passenger initiated this and asked ABF officers if the baggage examination had anything to do with NDIS. ABF officers then asked if she had been in any trouble with any law enforcement agencies previously? To which the passenger replied 'yes NDIS, I had to sell my house to pay approx. AUD 850,000 in legal fees'.

- Did ABF provide any response to her question on if the baggage exam had anything to do with NDIS – If so, what was our response?

- The passenger mentioned that she thought this was in regards to previous NDIS issues. The passenger advised ABF that the charges had been dropped and asked why we were doing this examination. ABF then advised we have a process to follow.

s. 37(2)(b)

s. 37(2)(b)

- How was the intervention by ABF explained to the complainant?

- Initially this was explained by way of – every passenger that travels through an international airport is subject to some form of customs checks, and today this was how your checks are being undertaken.

-
- And afterwards? This is incomplete.

Further, could the officers involved please comment regarding their response to the claims for LPP by the complainant – for example: did they seek advice from a Supervisor before proceeding to examine the devices?

- The only devices examined were two mobile devices. One mobile device was

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examined and one mobile device was held pending examination due to the Husband not providing his PIN. The passenger also advised that documentation in her possession contained LPP s. 37(2)(b) s. 37(2)(b)

- Did s. 22(1)(a)(ii) seek advice on managing the claims for LPP? What documents/devices did the complainant claim LPP on? What documentation was copied? Who made the decision that any of the documentation copied or examined were not subject to LPP?

- Yes I did seek advice from my senior officer and it was discussed after the passenger mentioned to ABF that LPP documentation was on her Laptop. The laptop was put to the side and was not subject to any DDE. Nil documentation containing any LPP was located and or copied s. 47E(d) s. 47E(d)

-
- Who was the senior officer consulted with, what was discussed, what was the outcome of the consultation? What information did the passengers identify as LPP on their laptops. The CCTV shows that the laptops were not just put to the side but taken away by the DDE officer (with passwords provided by the passengers) – for what purpose and what was done with the laptops while out of the passengers sight? How was it determined what documentation was covered by LPP, who made the assessment?

  Please expand on this.

Kind regards,

s. 22(1)(a)(ii)
Supervisor Aviation Management WA
Aviation |Operations West
Regional Operations West
Australian Border Force
s. 22(1)(a)(ii)

OFFICIAL: Sensitive

From: s. 22(1)(a)(ii)
Sent: Wednesday, 9 October 2024 3:16 PM
To: s. 22(1)(a)(ii)
Subject: RE: Complaint: REID, Vida (F) 11JAN1987 (IMMI-24-32444) [SEC=OFFICIAL:Sensitive]

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OFFICIAL: Sensitive

Hi s. 22(1)(a)(ii)

Please find additional responses from s. 22(1)(a)(ii) underlined below.

Regards
s. 22(1)(a)(ii)
Duty Manager | Aviation Operations
Operations West
Maritime & Detention Operations Group
Australian Border Force
s. 22(1)(a)(ii)

OFFICIAL: Sensitive

From: s. 22(1)(a)(ii)
Sent: Wednesday, 9 October 2024 1:35 PM
To: s. 22(1)(a)(ii)
Cc: s. 22(1)(a)(ii)
s. 22(1)(a)(ii)
Subject: FW: Complaint: REID, Vida (F) 11JAN1987 (IMMI-24-32444) [SEC=OFFICIAL:Sensitive]

OFFICIAL: Sensitive

Hi s. 22(1)(a)(ii)

Similar to my response to s. 22(1)(a)(ii) account, please find my additional questions in Red below for follow up.

Kind regards,

s. 22(1)(a)(ii)
Supervisor Aviation Management WA
Aviation |Operations West
Regional Operations West
Australian Border Force
s. 22(1)(a)(ii)

OFFICIAL: Sensitive

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From: s. 22(1)(a)(ii)
Sent: Wednesday, 9 October 2024 12:50 PM
To: s. 22(1)(a)(ii)
Subject: RE: Complaint: REID, Vida (F) 11JAN1987 [SEC=OFFICIAL:Sensitive]

OFFICIAL: Sensitive

H s. 22(1)(a)(ii)

Please find attached overview from the supervising officer involved s. 37(2)(b) and an additional response from s. 22(1)(a)(ii) below:

The complainant has stated several times that she was told they were subject to an alert and that:

- advised us that we will be detained every time we travel in the future as per the NIDS instructions and each time all of our data will continuously be collected….
    - The passenger was never detained or advised that they would be detained in the future, officers did not use that narrative. Additionally ABF did not carry out a 219 frisk search which would cause a passenger to be detained. ABF stated that the passenger may still be subject to baggage examination when travelling through an International port. ABF officers offered for her husband to leave and process through airport security with their children, however he declined and chose to stay with his wife. s. 37(2)(b)
    s. 37(2)(b)
    - s. 37(2)(b)
    s. 37(2)(b) Once the baggage exam was finished and we had issued the B390 for the husbands phone we were still waiting on the DDE to complete on the wife's phone. As mentioned earlier we cut that extraction short (wife's phone) to enable the family enough time to process through airport security and to board their outgoing flight.

- The Border Force employees stated that they were following instructions from the National Disability Insurance Scheme (NDIS)……
    - The passenger initiated this and asked ABF officers if the baggage examination had anything to do with NDIS. ABF officers then asked if she had been in any trouble with any law enforcement agencies previously? To which the passenger replied 'yes NDIS, I had to sell my house to pay approx. AUD 850,000 in legal fees'. Did ABF provide any response to her question on if the baggage exam had anything to do with NDIS – If so, what was our response?

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- The passenger mentioned that she thought this was in regards to previous NDIS issues. The passenger advised ABF that the charges had been dropped and asked why we were doing this examination. ABF then advised we have a process to follow.

s. 37(2)(b)

s. 37(2)(b) How was the intervention by ABF explained to the complainant?

- Initially this was explained by way of – every passenger that travels through an international airport is subject to some form of customs checks, and today this was how your checks are being undertaken.

Further, could the officers involved please comment regarding their response to the claims for LPP by the complainant – for example: did they seek advice from a Supervisor before proceeding to examine the devices?

- The only devices examined were two mobile devices. One mobile device was examined and one mobile device was held pending examination due to the Husband not providing his PIN. The passenger also advised that documentation in her possession contained LPP s. 37(2)(b)
s. 37(2)(b) Did s. 22(1)(a)(ii) seek advice on managing the claims for LPP? What documents/devices did the complainant claim LPP on? What documentation was copied? Who made the decision that any of the documentation copied or examined were not subject to LPP?

- Yes I did seek advice from my senior officer and it was discussed after the passenger mentioned to ABF that LPP documentation was on her Laptop. The laptop was put to the side and was not subject to any DDE. Nil documentation containing any LPP was located and or copied s. 47E(d)
s. 47E(d)

Regards
s. 22(1)(a)(ii)
Duty Manager | Aviation Operations
Operations West
Maritime & Detention Operations Group
Australian Border Force
s. 22(1)(a)(ii)

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OFFICIAL: Sensitive

From: s. 22(1)(a)(ii)
Sent: Wednesday, 9 October 2024 7:32 AM
To: s. 22(1)(a)(ii)
s. 22(1)(a)(ii)
Cc: s. 22(1)(a)(ii)
s. 22(1)(a)(ii)
Subject: RE: Complaint: REID, Vida (F) 11JAN1987 [SEC=OFFICIAL:Sensitive]

OFFICIAL: Sensitive

Hi s. 22(1)(a)(ii)

Thank you for this initial response from s. 22(1)(a)(ii) However there are a few points that still need to be addressed –

The complainant has stated several times that she was told they were subject to an alert and that:

- advised us that we will be detained every time we travel in the future as per the NIDS instructions and each time all of our data will continuously be collected….
- The Border Force employees stated that they were following instructions from the National Disability Insurance Scheme (NDIS)……

Could s. 22(1)(a)(ii) and anyother officer involved please provide comment to these statements. s. 37(2)(b)
s. 37(2)(b)

Further, could the officers involved please comment regarding their response to the claims for LPP by the complianant – for example: did they seek advice from a Supervisor before proceeding to examine the devices?

Who was the supervising officer involved s. 37(2)(b) Could they please provide their overview of the events as well.

Kind regards,

s. 22(1)(a)(ii)
Supervisor Aviation Management WA
Aviation |Operations West
Regional Operations West
Australian Border Force
s. 22(1)(a)(ii)

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OFFICIAL: Sensitive

From: s. 22(1)(a)(ii)
Sent: Tuesday, 8 October 2024 3:57 PM
To: s. 22(1)(a)(ii)
Subject: RE: Complaint: REID, Vida (F) 11JAN1987 [SEC=OFFICIAL:Sensitive]

OFFICIAL: Sensitive

H s. 22(1)(a)(ii)

Please find below comments from s. 22(1)(a)(ii) who conducted the outwards baggage examination on s. 37(2)(b)

- My son has six disabilities, including autism level 3, is non-verbal, and was extremely distressed by the situation. During the search, he was screaming, running around in panic, and completely overwhelmed. Despite this, the officers continued their actions, disregarding his condition and the emotional toll on him.

  - At the start of the interaction with the passenger and her family I personally advised her that I had dealt with children in the past who are Autistic and tried to reassure her that I would do everything I could to make this process as smooth as possible. s. 22(1)(s. 22(1)(a)(ii) .

    I asked the passenger if she would prefer that her son sit with their elder daughter in the seating area at the outwards referrals area, which she agreed was a good idea. The child was restless there, so after some time I offered him a chair at the bench in the outwards examination area, so he could be close to his parents.

    Their son was also restless in the outwards examination area and he continually tried to play with the ABF cabinet x-ray, upon seeing this my senior ABF officer disabled the x-ray so the child could continue to run his hands over the rollers and play with the x-ray curtains.
    I also offered both of their children some water from the drinking fountain to which they politely accepted.

- Threats of Future Detention: ABF officers, including s. 22(1)(a)(ii) advised us that we will be detained every time we travel in the future as per the NIDS instructions and each time all of our data will continuously be collected, without providing any justification for such a threat.

  - All passengers were at no time detained s. 37(2)(b)

s. 37(2)(b)

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Nothing was retained from the mobile devices, the mobile devices were only examined. Under s186 of the Customs Act.

There was nil data retained from any mobile device as per the DDE form. The examination was also cut short and abandoned to allow the passenger and her family time, to board their outbound flight to Bali.

The passenger husband's mobile device was held on a B390 form, he was unable to provide ABF with the PIN over multiple requests and failed attempts to unlock that device. ABF advised that the mobile device would then be held and sent for digital device examination.

- When questioned several times, The Border Force employees stated that they were following instructions from the National Disability Insurance Scheme (NDIS) to bypass the legal requirement of obtaining a warrant, which is highly irregular and raises concerns of unlawful detention and surveillance targeting individuals including children with disabilities.

s. 37(2)(b)

ABF officers offered for the husband to take himself and the children through to Airport security, as we were at that stage of only dealing with the passenger's mobile device.

I believe that myself and my senior ABF officer acted professionally, courteously and were extremely sensitive to the fact that the passenger had a child with disabilities travelling with her during examination.

Regards
s. 22(1)(a)(ii)
Duty Manager | Aviation Operations
Operations West
Maritime & Detention Operations Group
Australian Border Force
s. 22(1)(a)(ii)

OFFICIAL: Sensitive

From: s. 22(1)(a)(ii)
Sent: Tuesday, 8 October 2024 7:59 AM
To: s. 22(1)(a)(ii)

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s. 22(1)(a)(ii)
Cc: s. 22(1)(a)(ii)
s. 22(1)(a)(ii)
Subject: Complaint: REID, Vida (F) 11JAN1987 [SEC=OFFICIAL:Sensitive]

OFFICIAL: Sensitive

Good morning s. 22(1)(a)(ii)

OSCG Perth have received the below complaint. While the complainant has been re-directed to GFU to formally lodge her complaint we are in the process of gathering information in relation to the event.

Could you please review the below and investigate with the team and provide a response by the end of this block – If you could ensure the following points of her complaint are addressed as a start:

- My son has six disabilities, including autism level 3, is non-verbal, and was extremely distressed by the situation. During the search, he was screaming, running around in panic, and completely overwhelmed. Despite this, the officers continued their actions, disregarding his condition and the emotional toll on him.
- Threats of Future Detention: ABF officers, including s. 22(1)(a)(ii) advised us that we will be detained every time we travel in the future as per the NIDS instructions and each time all of our data will continuously be collected, without providing any justification for such a threat.
- When questioned several times, The Border Force employees stated that they were following instructions from the National Disability Insurance Scheme (NDIS) to bypass the legal requirement of obtaining a warrant, which is highly irregular and raises concerns of unlawful detention and surveillance targeting individuals including children with disabilities.

s. 47E(d)

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s. 47E(d)

Kind regards,

s. 22(1)(a)(ii)
Supervisor Aviation Management WA
Aviation |Operations West
Regional Operations West
Australian Border Force
s. 22(1)(a)(ii)

OFFICIAL: Sensitive

From: vida Reid <vida_reid@yahoo.com>
Sent: Friday, 4 October 2024 12:49 PM
To: s. 22(1)(a)(ii) feedback@ndis.gov.au; enquiries@ndis.gov.au
Cc: Perth Magistrates Court <perthmagistratescourt@justice.wa.gov.au>; Simon Reid <reid.simon4@gmail.com>; s. 22(1)(a)(ii)
Subject: Harassment, unlawful detention and seizure of electronic of 4 devices by ABF at request of NDIS and NDIS minister

Good Afternoon,

I am writing to lodge a formal complaint regarding a serious distressing incident involving unlawful detention, harassment, and violation of Legal Professional Privilege (LPP) by Australian Border Force (ABF) officers during my travel from **Perth to Bali on 25th September 2024**. My husband and I were detained by ABF officers at **Perth Airport** prior to our departure for about 3 hours, where our electronic devices were confiscated and searched without a warrant.

I would like to emphasize the extent to which the actions of the Australian Border Force (ABF) officers during our travel on **25th September 2024** violated established laws and guidelines governing their conduct. Specifically, I refer to provisions of the **Australian Border Force Act 2015**, **Customs Act 1901**, and relevant ABF operational guidelines. These actions included unlawful detention, violation of Legal Professional Privilege, and mistreatment of our disabled child.

Incident Summary:

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- **Date and Location**: 25th September 2024, at **Perth Airport**, while attempting to depart for Bali.
- **Confiscated Devices**: Our phones and laptops were confiscated, and we were advised the contents were copied without our consent or a warrant at the instructions and request of the NDIS and NDIS taskforce.
- **Violation of Legal Professional Privilege**: Despite my objections, ABF officers photocopied documents that are protected under LPP.
- **No Certification Provided**: When I requested a certificate confirming the copying of my legally privileged documents, any actions they are taking with our devices etc, ABF officers refused to provide one. Furthermore, we were refused contact with our law firm to assert this privilege.
- **Phone confiscated**: My husband's phone was taken due to him not remembering his pin code despite the phone being unlocked already and the Border Force personnel insinuated he is a liar for not remembering it. They got aggressive with my husband stating they cannot copy the content over if they don't have the pin even though the phone is unlocked. They stated they can't tell my husband if or when he will have his phone back.

- **Search of Luggage and Disabled Child's Items**: The officers removed our luggage from the plane and went as far as searching through my disabled son's belongings and his little bag of story books he was holding.

- My son has six disabilities, including **autism level 3**, is **non-verbal**, and was extremely distressed by the situation. During the search, he was **screaming, running around in panic**, and completely overwhelmed. Despite this, the officers continued their actions, disregarding his condition and the emotional toll on him.

- **Threats of Future Detention**: ABF officers, including s. 22(1)(a)(ii) advised us that we will be detained every time we travel in the future as per the NIDS instructions and each time all of our data will continuously be collected, without providing any justification for such a threat.

When questioned several times, The Border Force employees stated that they were following instructions from the **National Disability Insurance Scheme (NDIS)** to bypass the legal requirement of obtaining a warrant, which is highly irregular and raises concerns of unlawful detention and surveillance targeting individuals including children with disabilities.

This conduct has caused extreme distress, as we were treated unlawfully, had our privacy breached, and were subjected to intimidation with the threat of future detentions.

Violations:

1. **Unlawful Search and Seizure of Devices Without a Warrant**:
    - The **Customs Act 1901** grants ABF officers powers to search and seize items, but only under specific conditions and with reasonable grounds for suspicion. In this instance, the **confiscation and copying of our electronic devices without a warrant or proper justification** breaches both the **Customs Act** and the **Australian Border Force Act 2015**.

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- Furthermore, according to **ABF guidelines**, officers must ensure that searches are conducted in a manner that respects the rights and privacy of individuals. The copying of our devices, particularly when no active charges were pending against us, was an unjustified overreach of power and lacked appropriate oversight.

2. **Violation of Legal Professional Privilege**:

   - Legal Professional Privilege (LPP) is a fundamental right protected by law, including in ABF operational policies, which require that privileged documents be handled with special care. Despite my objections, the ABF officers copied legally privileged documents from our devices. We were laos refused contact with our lawfirm to assert the LPP.
   - **ABF guidelines** mandate that if LPP is asserted, the officers must respect it unless they have explicit legal authority to override it—usually requiring a warrant or court order. The copying of my privileged documents without proper authorization was a direct violation of this privilege and of procedural fairness.

3. **Failure to Provide Documentation and Act Transparently**:

   - When I requested a certificate or acknowledgment of the copying of my LPP documents, the officers **refused to provide it**. Under ABF guidelines, transparency and accountability are crucial when conducting searches of sensitive materials. The refusal to document their actions not only raises concerns about their legality but also breaches ABF's duty to maintain transparency.

4. **Treatment of Vulnerable Individuals**:

   - According to the **ABF Code of Conduct** and international human rights obligations, including Australia's commitments under the **International Covenant on Civil and Political Rights (ICCPR)**, individuals must be treated with dignity, respect, and without discrimination. The actions taken during the search of my disabled son's belongings—despite him experiencing extreme distress and panic—constituted a breach of the **Disability Discrimination Act (1992)** and ABF's own policies regarding the treatment of vulnerable persons.
   - The officers failed to make any reasonable accommodations for my son's disabilities, which resulted in unnecessary distress. This disregard for his condition violated the principles of care and non-discrimination that are fundamental to the **Disability Discrimination Act** and **ICCPR**.

Legal Precedents:

I would like to bring to your attention the following legal precedents and established rights, which highlight the gravity and unlawfulness of the actions

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taken by the ABF officers:

1. **Haneef Case (2007)**: In this case, Dr. Mohamed Haneef was unlawfully detained by Australian authorities without substantial grounds. He successfully sued for wrongful detention and defamation, and was awarded compensation. I believe my situation bears similarities, especially considering the absence of active charges against me and the threats of continued detention. I request an investigation into why such treatment is persisting, despite the fact that all charges against me have been dropped.
2. **Legal Professional Privilege Protection**: The unauthorized copying of my legally privileged documents by ABF officers represents a direct violation of Legal Professional Privilege. The courts have consistently upheld LPP rights as a fundamental principle protecting confidential communications between a client and their lawyer. This violation warrants immediate investigation and accountability for the officers involved.
3. **International Human Rights Law - ICCPR**: Australia is a signatory to the **International Covenant on Civil and Political Rights (ICCPR)**, which protects individuals from arbitrary detention (Article 9) and ensures protection against arbitrary interference with privacy (Article 17). The actions taken by ABF, including the detention, search, and copying of my personal documents, as well as threats of future detention, violate these fundamental rights.
4. **Disability Discrimination Act (1992)**: The treatment of my disabled son during the search of our belongings, which caused him extreme distress, violates the **Disability Discrimination Act**. The officers failed to make reasonable accommodations for his disabilities and caused significant emotional distress, constituting discriminatory behavior by a government authority.

My Request:

I demand that your office investigate this incident thoroughly and take the following actions:

1. **Justification**: Investigate whether the actions of ABF were lawful, especially concerning the lack of a warrant.
2. **LPP Violation**: Address the breach of my Legal Professional Privilege and the unauthorized photocopying of my legal documents.
3. **Accountability**: Hold the responsible officers accountable for harassment, unlawful detention, and violation of privacy.
4. **Reparations**: Explore the appropriate remedies for the infringement on my rights and the distress caused by these actions.
5. **Future Travel**: Clarify the basis for the threat that we will be detained every time we travel and ensure this threat is retracted if no lawful grounds exist.
6. **Protection of Legal Professional Privilege (LPP)**: Ensure that any LPP material that has been extracted is not used. We maintain our LPP privilege and rights. You are on notice.

Australian Border Force's role is to protect and secure the borders of Australia, not to be used as a tool for thuggery to bypass established legal protections and due process in Australia. This is now the 3rd time you have done this to us.

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I trust that your office will handle this matter seriously, and I look forward to your response on how this issue will be addressed. I demand a response and explanation within **7 business days.**

For any clarifications or updates regarding the progress of this matter, I can be contacted directly on this email and/or on mobile 0478880685 Given the urgency of this issue, I expect priority handling.

Sincerely,

Vida Reid

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under the *Freedom of Information Act 1982*

From: s. 22(1)(a)(ii)
To: s. 22(1)(a)(ii)
Cc: s. 22(1)(a)(ii)
Subject: FW: Complaint: REID, Vida (F) 11JAN1987 (IMMI-24-32444) [SEC=OFFICIAL:Sensitive]
Date: Wednesday, 9 October 2024 4:20:43 PM

OFFICIAL: Sensitive

H s. 22(1)(a)(ii)

Given the nature of the complaint and on reviewing s. 22(1)(a)(ii) response below, there are further questions as provided in red. Could you please follow up – many thanks.

Kind regards,

s. 22(1)(a)(ii)
Supervisor Aviation Management WA
Aviation |Operations West
Regional Operations West
Australian Border Force
s. 22(1)(a)(ii)

OFFICIAL: Sensitive

From: s. 22(1)(a)(ii)
Sent: Wednesday, 9 October 2024 12:48 PM
To: s. 22(1)(a)(ii)
Subject: Complaint: REID, Vida (F) 11JAN1987 [SEC=OFFICIAL:Sensitive]

OFFICIAL: Sensitive

Hi s. 22(1)(a)(ii

The complainant stated they are aware as to why they were subject to Law Enforcement interest.
The complainant stated that they had court proceedings against them from the NDIS dropped.
The complainant was then told ABF are completing a baggage examination on behalf of another agency. – To Clarify: Did ABF tell the complainant that the Baggage Exam was on behalf of another agency?

ABF advised that they would need to speak with AFP or their Lawyer if charges against them have been dropped and that the examination would still need to take place s. 37(2)(b)
s. 37(2)(b)

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s. 37(2)(b)

The complainant was not advised at any time they were detained or being detained or the subject of an alert.
The complainant asked if they would be subject to examination in the future as this isn't the first time they've been examined for this. – What was our response to this?

The complainant was not told at any time that ABF were following instructions from the National Disability Insurance Scheme (NDIS)……
Complainant was the only one to mention NDIS and stating someone had set her up.

The complainant asked ABF will I be examined all the time.
The complainant was told by ABF that they may be subject to examination for future travel.

In regards to LPP the complaint advised ABF that her laptop/iPad contained LPP material. (This was put aside by ABF but not examined). To confirm, the claimant did not at any point advise the ABF that the mobile phones contained LPP material, only the Laptop and iPad?

Only devices examined were 2 x Mobile devices. 1 examined and 1 held pending examination.

Pax also advised that documentation in her possession contained LPP. (Any documentation copied or examined by ABF s. 37(2)(b) were found not to be subject to LPP). – s. 37(2)
s. 37(2)(b)
s. 37(2)(b)

s. 37(2)(b)

Kind Regards

s. 22(1)(a)(ii)
Leading Border Force Officer
Aviation Travellers Team | Aviation Operations
Operations West
North, West & Detention Group
Australian Border Force
s. 22(1)(a)(ii)

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s. 42(1)

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s. 42(1)

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under the *Freedom of Information Act 1982*

s. 42(1)

Released by Department of Home Affairs
under the *Freedom of Information Act 1982*

s. 42(1)

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Australian Government
Department of Home Affairs

Legal professional privilege (LPP) claimed at the border for phone examination

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This session

s. 22(1)(a)(ii)

- What is LPP?
- To whom does LPP belong?
- The two limbs of LPP:
  - advice and
  - litigation
- Elements of LPP
- Resolving claims of LPP
- Examination and copying power under the Customs Act
- How claims of LPP can be resolved if raised when seeking to examine a phone at the border

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What is LPP?

- LPP is an absolute privilege from disclosure (subject to any legislation to the contrary) which protects confidential communications between a lawyer and their client



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What is LPP?

- LPP is an absolute privilege from disclosure (subject to any legislation to the contrary) which protects confidential communications between a lawyer and their client
- A person cannot be required to disclose information that would be subject to LPP and if the privilege applies, this information cannot be used against them



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What is LPP?

- LPP is an absolute privilege from disclosure (subject to any legislation to the contrary) which protects confidential communications between a lawyer and their client
- A person cannot be required to disclose information that would be subject to LPP and if the privilege applies, this information cannot be used against them
- LPP must be claimed to have effect and a person claiming the privilege must be given a reasonably opportunity to claim

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Who does the privilege belong to?

- The privilege belongs to the client – not the legal adviser
- A lawyer however, can claim privilege on behalf of their client so as to protect the privilege from waiver



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Two limbs of LPP

Advice privilege

- confidential communications between a legal adviser and client for the dominant purpose of giving or receiving legal advice
- a lawyer advising their client what may prudently and sensibly be done in a relevant legal context



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Two limbs of LPP

Advice privilege

- confidential communications between a lawyer and their client for the dominant purpose of giving or receiving legal advice
- a lawyer advising their client what may prudently and sensibly be done in a relevant legal context

Litigation privilege

- confidential communications between a lawyer and their client for use in, or in relation to litigation, whether the litigation exists or is reasonably anticipated

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Elements of LPP

1. Confidentiality
2. Communications
3. Dominant purpose

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Elements of LPP

1. Confidentiality
2. Communications
3. Dominant purpose

Does not apply

- To communications in further of an illegal or improper purpose; or
- If there has been a waiver of privilege

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Resolving issues of LPP

- If a matter is in court and LPP is raised, the Court will determined whether the privilege is substantiated
- More difficult during the investigation process because essentially it becomes a matter of cooperation between the investigating party and the claiming party
- Some agencies have developed (and published) guidelines regarding how they exercise their powers in respect of a claim for LPP.

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Examination and copying under the Customs Act

- Examine goods under **customs control**
- Can copy or take extracts of examined documents in limited circumstances

s. 22(1)(a)(ii)

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Examination Power

Customs Act section 186 – General powers of examination of goods subject to Customs control

(1) Any officer may, subject to subsections (2) and (3), examine any goods subject to customs control, and the expense of the examination including the cost of removal to the place of examination shall be borne by the owner.

(2) In the exercise of the power to examine goods, the officer of Customs may do, or arrange for another officer of Customs or other person having the necessary experience to do, whatever is reasonably necessary to permit the examination of the goods concerned.

(3) Without limiting the generality of subsection (2), examples of what may be done in the examination of goods include the following:

(a) opening any package in which goods are or may be contained;

(b) using a device, such as an X-ray machine or ion scanning equipment, on the goods;

(c) testing or analysing the goods;

(d) measuring or counting the goods;

(e) if the goods are a document—reading the document either directly or with the use of an electronic device;

(f) using dogs to assist in examining the goods.

(4) Goods that are subject to customs control under section 31 do not cease to be subject to customs control merely because they are removed from a ship or aircraft in the course of an examination under this section

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Copy Power

Customs Act section 186A – Power to make copies of, and take extracts from, documents in certain circumstances

(1) If:

(a) a document is examined under section 186 or 186AA; and

(b) as a result of that examination, **an officer of Customs is satisfied that** the document or part of the document **may contain information relevant to:**

(i) an importation or exportation, or to a proposed importation or exportation, of prohibited goods; or

(ii) the commission or attempted commission of any other offence against this Act or of any offence against a prescribed Act; or

(iii) the performance of functions under section 17 of the *Australian Security Intelligence Organisation Act 1979*; or

(iv) the performance of functions under section 6 of the *Intelligence Services Act 2001*; or

(v) security (within the meaning of section 4 of the *Australian Security Intelligence Organisation Act 1979*);

the officer of Customs may make a copy of, or take an extract from, the document, or arrange for another officer of Customs or other person having the necessary experience, to make such a copy or take such an extract.

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Prescribed Acts are detailed in regulation 118 of the *Customs Regulation 2015* and include:

- *Anti-Money Laundering and Counter-Terrorism Financing Act 2006*
- *Aviation Transport Security Act 2004*
- *Bankruptcy Act 1966*
- *Biosecurity Act 2015*
- *Crimes Act 1914*
- *Crimes (Aviation) Act 1991*
- *Crimes (Hostages) Act 1989*
- *Crimes (Internationally Protected Persons) Act 1976*
- *Crimes (Ships and Fixed Platforms) Act 1992*
- *Criminal Code Act 1995*
- *Environment Protection and Biodiversity Conservation Act 1999*
- *Family Law Act 1975*
- *Financial Transaction Reports Act 1988*
- *Fisheries Management Act 1991*
- *Geneva Conventions Act 1957*
- *Migration Act 1958*
- *Proceeds of Crime Act 1987*
- *Quarantine Act 1908* as in force before 16 June 2016
- *Torres Strait Fisheries Act 1984.*

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Examining phones when a LPP claim is made

- As flagged, a blanket LPP claim over a phone is not sustainable and the person claiming the privilege will need to detail their claim. Namely, a passenger will need to advise what on the phone (specific communications, photos etc) may be subject to LPP and why
- A passenger must be given a reasonably opportunity to make their claim
- A phone can be held pending examination pursuant to s 186 of the Customs Act and should be held until issues surrounding the passenger's LPP claim are resolved
- **<u>If in doubt seek Legal advice</u>**



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Resolving a LPP claim

Scenario 1

- A passenger comes through the airport and ABF officers say they are going to examine his phone
- The passenger confirms that there are communications with his lawyer on the phone which are subject to LPP.



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Resolving a LPP claim

Scenario 2

- A passenger comes through the border and says their phone can't be examined because they are a lawyer and their phone is privileged.



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Important Reminders

- Under s 186 of the Customs Act we can only examine what is ON a phone – not what is 'in the cloud'.
- The power to copy under s 186A is only engaged once an officer has examined the document and has reached the relevant state of mind required to copy.

s. 47E(d)

- Get in touch with your friendly Ops Law Regional Lawyers if you have any queries or a claim is raised

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Questions?



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s. 47E(d)

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